9/21/2022 - Brooklyn Union Gas/National Grid - 19-G-0309/0310

STATE OF NEW YORK

OFFICE OF RENEWABLE ENERGY SITING

CASE 19-G-0309 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

CASE 19-G-0310 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

INFORMATION SESSION

AND

PUBLIC STATEMENT HEARING

DATE: September 21, 2022 at 6:08 p.m.

LOCATION: 76 Kingsland Avenue
Cooper Park Houses
The Gymnasium
Brooklyn, New York 11211

BEFORE: A.L.J. MAUREEN F. LEARY

Reported by Hannah Allen

(The hearing commenced at 06:08 p.m.)

A.L.J. LEARY: We are going to get started because I don't want everybody to get home too late. Welcome to -- Ms. Belair, are you ready to go on the record?

THE REPORTER: I am.

A.L.J. LEARY: Thank you. I call case 19-G-0309 and 19-G-0310. Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid.

Again, good evening, everyone. My name is Maureen Leary. I am an Administrative Law Judge at the Department of Public Service. I will be presiding over this evening's public statement hearing as well as the information session that precedes it. I want to give you a roadmap of what's going to go on tonight and give you a little context.

This hearing was the subject of a notice which I have available up here. And it's also available at the registration table. This notice was issued by the Secretary to the Commission notifying the public of this hearing on Greenpoint vaporizers 13 and 14. This is an important notice for you to

have in your hand or available electronically because it provides you with information about where to get further information about this proposal. And it also provides you with good information on how to comment beyond this public statement hearing.

Tonight, you'll have that opportunity. But if you want to submit written comments, which are just as effective, this notice will help you do that. Working with me this evening, is our Office of Consumer Services. And you might wonder who they are and what they do.

Well, they interact with the consumer, with you, with the public and they're very helpful, but without them working with me, this hearing would not have happened. And I also want to thank the Company because they did a lot of logistical work.

I also want to thank the folks at the Polish & Slavic Center, Alex, and your team. Thank you, Alex, for having us. It's just a lovely venue. And I want everybody to come up at the break if there is a break and see these plants up here because they're fantastic. And no one knows where they came from. That's the only thing, right, Alex.

There is some -- somebody keeps them

beautifully. So finally, I want to thank you for coming. Civic engagement is really important. It's critically important to our State, to our democracy. And I know it takes time. You took time out of your busy lives to come here. So thank you so much for doing that.

So here's the roadmap of what's going to go on. We're going to begin with an information session that the Company will provide about the proposal, specifically the Greenpoint Liquefied Natural Gas facility's addition of two vaporizers, Vaporizers 13 and 14 are what we call them.

Now, the company filed a proposal on August 29th, which began this process. Why is that important? I'll get to that in a second. But the information session will be followed by a question and answer period. Do not confuse that with the public statement portion of this hearing.

The question and answer period is designed for you to get your questions answered by the company. But make sure your questions are about the proposal and not about your utility bill. That's not why we're here. There are other opportunities for you to deal with that

in the future. Your rate filing is coming up next year, sometime in April or so. So there's an opportunity -- for folks to participate in that process. So please make sure your questions are about the proposal and not about other things.

So following the question and answer period, we will begin the public statement part of the hearing at which I have cards for those who have registered. They look like this. Okay. Perfect. So if you -- if you want to speak this evening but have not yet filled out a card, see this young lady behind me or go back up to the registration desk and complete a card.

So let me talk a little bit about the overview because this is super important, contextually for you to understand. The company's proposal is looking for Commission approval, not specifically of these vaporizers. They're subject to a separate approval permitting process before the Department of Environmental Conservation.

What this proposal is being subjected to is the review by an independent consultant, who actually is in attendance this evening. Representatives of that independent consultant are

here. And they're qualified to take a look at this project. And in an order that the Commission issued, the company agreed and the Commission ordered that this proposal be subject to that independent review.

Why is that important? It's important because there's a fresh set of eyes. It's not just our agency or the company. It's a fresh set of eyes. And that fresh set of eyes applies some criteria to make sure that this proposal is solid, so to speak. What's the criteria? I like to tell everybody the number one criteria, public input. That's why it's important that you're here tonight.

Other criteria include emissions potential, you know, what are the greenhouse gas emissions that are going to come out in the facility, do they go up? Do they go down? Why is that important, because that's what the climate change law in New York requires us to take a look at.

Other things also include, is there a real need for the project? Do we need the project for reliability and over what time frame? What are the costs of the project going to be, which will be passed on to ratepayers and that will be in a surcharge that you would see on your bill, for

example.

So the review by the independent consultant is very important. The report of the independent consultant is made directly to the Commission and it will make a recommendation, will have an analysis and findings. That report, if you want to stay engaged,is very important for you to find on our website; our website is www.dps.ny.gov.

And you want to search, there's a search function bar, under the case number which is on this notice, that's why this notice is important, but it's 19-G-0309. There's a second number, that's also on the notes, you don't need -- you only need one of those numbers to come up with the docket for this proceeding and the independent consultant's report.

So what happens when the Commission gets the report and the report may recommend the approval of the vaporizers. It may say maybe later, it may make whatever it makes as recommendations. But the bottom line is the Commission is not bound by what the independent consultant says.

They can accept, or reject, or modify what the independent consultant says within their

expertise. So yet, there's another phase to this process -- this process that's very important and should make you feel pretty good about how this will go forward.

So that other part of the process I wanted to make sure you knew about was before the Department of Environmental Conservation, they're considering an air pollution permit for these vaporizers too. Again, that's a public process that you can participate in. Information is available on D.E.C.'s website, much like ours, it’s www.dec.ny.gov.

But I think it's probably more laser like for you to go on the Company's website, which is Greenpointenergycenter, one word Greenpointenergycenter.com. So either way, you can get information about that part of the process. We're not here tonight about the D.E.C. air pollution permit, that’s another agency who is doing its review differently than what we're doing.

Okay. With that, I hope you understand sort of the scope of the process. We're going to have the independent consultant's review after we hear from you. The independent consultant will consider what is said tonight, what we said yesterday in our virtual hearings, what was said this

afternoon in another in-person hearing in Greenpoint.

And that goes into the mix of what the independent consultant considers. So with that said, I'm going to ask Mr. Decicco, a representative from National Grid. Are you ready to proceed?

MR. DECICCO: Yes, Judge, absolutely.

A.L.J. LEARY: Here's the information session, everyone.

MR. DECICCO: Yeah. And thank you so much and I appreciate everyone's attention. This is now the fourth of these sessions and some of you have heard us say this now a couple of times, but we absolutely appreciate, first of all, Polish & Slavic Center for making the facility available to us and D.P.S. for facilitating the meeting.

As the Judge said, my name is Phil Decicco and I represent National Grid. And I first want to thank you for coming and engaging in this public process of hearing your feedback and sharing your comments and your questions. As I've said now in each of these meetings, public feedback, now more than ever, is shaping our approach to serving customers.

And this meeting is yet another

opportunity to hear your comments. National Grid serves nearly two million customers in Downstate New York. Customers rely on us every day to heat their homes, and cook their food, and power their businesses and really provide essential energy services.

Today, we'll be discussing a project at our Greenpoint, Brooklyn facility that is key to our plans to meeting those customers' energy needs. So -- so why are we here? Back in 2019, we made commitments to the State of New York and we made commitments to our customers.

We said that we'd find solutions that allowed us to connect new customers in the near term because we heard loud and clear that that's what was wanted. And that we would solicit stakeholder feedback in developing longer term solutions to meet energy needs.

And we did just that through a public process that presented a range of options. We considered factors like reliability, affordability, environmental and community impacts. And we heard feedback that strongly supported programs like energy efficiency, really interested in seeing us reduce

customers' demand in energy consumption, instead of adding new supply.

With the benefit of that feedback, which is a really unique process and I think, you know, one of the more engaged considerations of these issues. We developed an approach that relies heavily on energy efficiency, weatherization, demand response, and electrification to reduce our customers' energy consumption.

We coupled that with a small portfolio of what our targeted investments to support near term safety and reliability. And one component of that plan is the Greenpoint Vaporizer Project. Now, we went with this project after hearing feedback because as you'll hear, the project allows us to use existing -- our existing Greenpoint energy storage assets more efficiently.

It involves no new gas supply, will only operate on a handful of days, and absolutely needed to serve customers. Provides unique and critical reliability benefits, and is more efficient, and consumes less energy than the existing units.

These plans have undergone review now in several contexts. Each time I think the feedback

has been recognition that there was a supply gap, that there are limited opportunities to address that supply gap and that our plan on balance is reasonable.

As the Judge mentioned, in addition to review by the Public Service Commission, the project requires an air permit from the New York State Department of Environmental Conservation, which will be addressed separately after this process.

So we heard a lot of questions over the last few days actually about sort of the need for the project and why we're -- why we're saying that we need these vaporizers. In our forecasts, our customers' demand drives all of our planning.

We use that forecast to develop models that tell us whether our system is capable of meeting energy needs of the coldest days of the year. And it's critical because there are significant health and safety consequences from not having enough gas when your customers need it.

Our forecast considers customers' energy use, economic factors, things like housing and construction data to anticipate those future needs. Our current forecast projects increasing demand in

the near term, which begins to flatten as energy efficiency and energy policy reduces that demand in the future.

So why is that important? We need to be able to build a system, as I said, capable of meeting our forecast energy needs. Our customers need to know when they turn on their thermostats on those coldest days that their heat is going to work. That's critically important. But I want to be absolutely clear.

This forecast is not our goal. We are trying very hard to bend that curve down. Because using less gas aligns with our vision of a sustainable energy future. And we want to focus on delivering the solutions, demand-side solutions like energy efficiency that our customers and stakeholders want to see us doing, not -- not finding more supply sources.

And that's why we've made changes. Changes to the way we do business. We've changed our rating mechanisms to eliminate financial incentives around customer growth. And instead, we now have incentives for lowering customer gas use and exceeding our energy efficiency targets.

We are not marketing gas and we've eliminated all customer incentives for gas conversions. Instead, we are providing alternatives. As I said this afternoon, if you apply for gas, you will be told about your electrification options and we'll even show you where you can get grants to help subsidize the costs.

And we've seen some good progress. Go to the next slide. We are investing more than 140 million dollars in demand reduction programs over the terms of our rate plan. And this year, we secured approval to do even more.

Our approach increasingly relies on weatherization programs, which provide benefits no matter how our customers ultimately choose to heat their homes, especially if they choose to electrify. We are targeting programs at our low and moderate income customers to help manage their energy burdens.

There is no better solution, as I've said, for lowering customers' bills and emissions than enabling customers to use less energy. And our commitments in this area are more than just aspirations. They're more than just proposals. We've set ambitious targets and there are significant

financial consequences if we don't meet -- meet those targets.

And so far we have. We've exceeded our target for energy efficiency and demand response. In the area of energy efficiency, we've achieved over two-and-a-half times as much annual savings as we had done just five years ago.

Our demand response programs on a peak day would eliminate the equivalent about 150,000 residential homes' worth of natural gas. And those programs started just a few years ago and are growing rapidly. We're also referring prospective customers to electrification and exploring options to deploy more non-pipes alternatives.

These are challenging targets and I will be candid, I don't think we're going to be able to consistently meet them going forward. But it's not going to be for lack of trying. But we can't rely on demand- side solutions exclusively.

As we've said, and we've acknowledged, we need to recalibrate our approach to gas investments and our approach to capital projects and really prioritize non-pipes alternatives. And we recognize the need for increased transparency. So we

have undergone -- so that's why we're -- why we're here today.

We've committed to undergo further assessment by a qualified independent consultant selected by the Department of Public Service. The independent consultant will consider several factors including safety, reliability benefits, greenhouse gas emissions, customer costs, public comments, and feedback, importantly among other factors.

I think it's important to emphasize we included these provisions in our rate settlement because we want to show that we are -- we are validating the need for infrastructure investments. We stand behind our commitments to non-infrastructure solutions and we support greater stakeholder engagement like this evening's proceedings.

So with that, I'm going to turn over to my colleague to talk about the actual project.

MR. CONNOLLY: Thank you, Phil. Good evening, folks. My name is Chris Connolly. I'm also a representative of National Grid. I have responsibility for National Grid's L.N.G. assets in the U.S. Let me start by covering a few of the basics.

What is liquefied natural gas, commonly referred to as L.N.G.? It's a cryogenic, colorless, odorless liquid stored at atmospheric pressure in tanks at minus 260 degrees Fahrenheit. It occupies approximately 1/600th the volume of liquid -- in liquid state as it would in the gaseous state.

A process called liquefaction cools and condenses the gas to a liquid utilizing onsite equipment to efficiently store it in the tanks. The process to fill our tanks from empty takes approximately 220 days. This is done during the warmer months of the year.

During very cold weather, approaching, typically around 15 degrees Fahrenheit, the liquid is withdrawn from the storage on site. It's reheated to approximately 40 degrees Fahrenheit, which is part of the vaporization process and reinjected into the gas distribution system to meet our customer needs.

The storage provides approximately five days of vaporization, if running continuously at full capacity. Now, that would be a very rare event. In the blue box here, I'll just highlight that the L.N.G. facility encompasses approximately 50 acres of

a total of 100 acre site referred to as National Grid's Greenpoint Energy Center.

Tank one was constructed in 1968. And tank two was constructed in 1971. The total storage is 1.6 billion cubic feet. When we think about the existing asset that we have at Greenpoint and we think about the liquefaction process and our vaporization capabilities, we have six existing vaporizers at the L.N.G. facility.

Three of which are connected to the high pressure distribution system. One of those three is redundant or used, you know, in case of a backup. We have three additional connected to the low pressure distribution. We have no redundancy on the low pressure vaporization services that we provide.

Vaporizers three -- 13 and 14 would connect to the low pressure distribution system only. A future state, we would have a total of five vaporizers that would be connected to the low pressure distribution system with one serving as a backup. So at any given time, we would operate only four -- up to four on those very coldest days of the year and we would have one as backup.

And again, I'll repeat, we don't have that backup and that reserve today. Next slide. So to share a little context, the Northeast has the highest concentration of L.N.G. peak-shaving facilities in the U.S. L.N.G. is a critical component of National Grid's ability to meet our peak heating season requirements and manage system operations.

Without on-system L.N.G., the company would be unable to meet heating season requirements. So L.N.G. is a supply resource, ensuring reliability to our customers, we sit at the end of the pipelines that deliver gas to our system.

The onsite L.N.G. supply connected to our distribution systems represents 11 percent of our peak day supply needed for our customers, again, those very coldest days of the year when the temperature is approaching zero degrees Fahrenheit. L.N.G. is a balancing resource.

The L.N.G. plant stands ready during the winter heating season, allowing for a fast response at those peak times to ensure reliable system operations. We have full control over the utilization of the vaporizers, only operating when

needed, based on the forecasted cold temperatures, or when there are interruptions in upstream pipeline supply coming into our region.

Again, I'll repeat, we only operate the vaporizers as we need them. If we only need two vaporizer to operate to ensure system reliability, we operate two. If we need three, we operate three. It'd be a very rare case where we're going to be operating the full suite of vaporizers not including the backups as I mentioned.

The L.N.G. facility supports the distribution system during peak periods of demands. This is typically in the early morning hours on those very cold days as our customers are beginning their day. Thermostats are calling for heat to warm homes, apartments, schools, and businesses.

Hot water is being consumed for showering and bathing and people are cooking breakfast. Those morning hours are critical, ensuring customers' needs are fully met. Next slide, please. Vaporizers 13 and 14 project utilizes the existing L.N.G. facility capabilities while adding two additional vaporizers to enable more efficient use of the onsite L.N.G. supply to reheat the liquid

and send out into the existing low pressure natural gas distribution network.

We're not adding capacity to the L.N.G. facility. This project would increase the output of the facility by 60,000 dekatherms per day for a future total of 350,000, dekatherms per day. The project wholly is contained within the Greenpoint L.N.G. facility and has an 18-month construction schedule.

I'll turn your attention to the schematic on the slide. The schematic that we're showing here provides an overview of plant operations. Very simply, we take the gas from the high pressure distribution system. We cool it through a process called liquefaction, which condenses the liquid, which condenses to a liquid state, and we store it.

This is done during the warmer months, typically the spring and fall seasons. The tanks are designed as a very large thermos to keep the liquid chilled, maintaining the liquid state at minus 260 degrees Fahrenheit. During the winter heating season and on the coldest day of the year -- coldest days of the year, the liquid is pumped from the tanks and

reheated.

That's the vaporization process and sent out into the distribution system. National Grid has been operating L.N.G. assets reliably for over 50 years. These assets are important to ensure that we meet our obligations to ensure reliable energy delivery to our customers when we need it.

Now, because we've received many questions and comments about the M.R.I. project, I want to address the differences between the vaporizer 13, 14 project and the M.R.I. project also known as the North Brooklyn Pipeline.

It's important here that we do make that distinction between this project, the vaporizer project and the Greenpoint L.N.G. -- at the Greenpoint L.N.G. facility and the M.R.I. project, that the in service -- that is in service as there were questions asked previously, as I mentioned.

The vaporizer 13, 14 project and the M.R.I. project are functionally independent and they have different purposes. The function of the M.R.I. project is to improve reliability and flexibility of the existing local high pressure distribution system. The M.R.I. project does not impact supply.

Further, the projects are disconnected in time, place, and purpose. The M.R.I. project was planned long before the vaporizer project was considered and was intended to improve the reliability and the flexibility of the existing local distribution system by creating an additional path for the gas to travel through, through the local distribution system.

There is no additional gas supply associated with M.R.I. Phases 1 through 4 are complete and in service. A planned phase 5 is not going to move forward, which would have allowed the completion of the loop of the high pressure distribution system to improve reliability.

M.R.I. phase 5 would have allowed us to optimize the system performance by moving gas most efficiently on the high pressure distribution system. Now, that doesn't mean that it's physically connected to the new vaporizers. It's not as I stated or that we do -- don't get value from the project without M.R.I. 5.

Our customers do get significant value from the vaporizer project. Vaporizer 13 and 14 is needed to more efficiently heat the onsite liquid

back to a gas and send out on those coldest days of the winter when interstate pipelines are unable to meet the demands. The project ensures reliability for our customers.

Next slide. So why are the vaporizers the best option? Designed to meet peak periods of demands, the new vaporizers do not add any additional supply or cause the plant to operate more frequently. The five-year history has the plant operating their vaporizers anywhere from 2 to 14 days.

If we expand over a 10-year history, the vaporizers were operated over an average of 8 days over that prior 10 years with the highest number of days at 19. And that was in the winter of 2013 and 2014, which was the year of the polar vortex.

Note that when we highlight the number of days of operation, again, we're not running all of the vaporizers. We're only running the number of vaporizers that are needed to support -- to support our customers' in-system reliability. We have full control over the utilization and will only run what's needed to support our customers.

Already mentioned the benefit is to ensure reliable operations and it's our duty to

ensure customers are afforded reliable service. The project cost is approximately 65 million. We are utilizing our existing L.N.G. facility because of the cost and they compare favorably to other projects and options considered and is able to be delivered without disruption to the community.

In terms of environmental conditions and emissions because of the intermittent and infrequent operations, we will see a reduced greenhouse gas emissions from the L.N.G. facility with these new, more efficient units in place.

This allows us to downgrade our existing permit, which caps nitrogen oxides to less than 25 tons per year, which is roughly half of the existing permit. From a community impact standpoint, all work is done within the footprint of the L.N.G. facility. And as such, there is no disruption to residents and business owners in the area.

No noise impacts, traffic impacts due to road closures and street restrictions, and no impacts to businesses conducting their normal business activities. And now I'll turn it back to Phil to finish out the presentation.

MR. DECICCO: Yeah, thanks, Chris.

And just in conclusion, you know, we submitted this project to this independent process and we're here talking about it because we think it's critical to serving our customers' needs.

And to demonstrate our commitment, we've conditioned our cost recovery on our ability to satisfy that assessment and actually validate what we're saying in terms of the benefits of the project and the relative merits of other options. We're also conditioning it on our ability to deliver non-infrastructure solutions.

Again, this is not business as usual to say the least. If we don't deliver our energy efficiency goals, we're not going to be able to recover the full cost of this project. That's something that we just have never agreed to before. I don't think anyone has. But that's how strongly we feel about this.

In terms of next steps, as the Judge said, parties and members of the public will have the opportunity to submit written comments and comment in this process. We encourage you to do that as soon as reasonably possible because we want to have those comments fully reflected in this proceeding.

After the report is filed by the independent consultant, it is considered by the Commission and your public feedback is considered, the Commission will issue a final decision regarding our application for this project. I want to thank you for your attention over these four sessions. We've had some really productive dialogue.

So I'm looking forward to having some more of that this evening. So with that, Judge, I'll turn it back to you.

A.L.J. LEARY: Thank you. So we're going to commence the question and answer period. I want to remind everyone this is not the opportunity for you to make a public statement. It is an opportunity for you to get information. So please, there is a bright line between those two things.

So by show of hands, does anyone have a question for the company? If you asked a question at this afternoon's hearing, you may not ask a question tonight, until the very end. I have people here that need to leave and need to make -- they're elected officials, they need to make public comments.

This is not your opportunity to be heard unless you really want information in which

case, get a sidebar with the company and get your information and questions answered sort of here. Let's Okay. Do you want to come up to the microphone? And feel free to remove your mask if you'd like.

MR. ROGERS: Yeah. I have two questions, actually, just one.

A.L.J. LEARY: I'm sorry. Would you state your name --

MR. ROGERS: Yes, that's fine.

A.L.J. LEARY: -- for the record?

MR. ROGERS: Yeah. So my name is Fabian Rogers. I'm a member of Brownsville Green Justice, Housing Organizer for People Empowerment. And I'm a staffer from Senator Brisport's office.

A.L.J. LEARY: Thank you.

MR. ROGERS: So nice to meet you all. I have two questions. First is, how can you characterize the L.N.G. vaporizer upgrade as a non-pipeline solution when pipelines are essential for bringing gas into and from the facility?

And the second one being in the rate case, isn't it true in Exhibit 735-April 9 response to requests for information that you made clear that the expansion of the L.N.G. facilities and completing

the connection of the M.R.I. project phase 5, was a critical component to realize National Grid's goal of serving 18,900 more customers and get gas where it's needed.

More specifically, didn't you state that Greenpoint L.N.G. and C.N.G. expansion is limited by the existing takeaway capability of the 16-inch steel Greenpoint spur and Brooklyn backbone, the 300 P.S.I. G.M.A.O.P. of the K.D.N.Y. transmission system, and the Maspeth regulating station, increasing the vaporization capability and C.N.G. injection rate mostly offset loads of K.D.N.Y. from Con-Ed without M.R.I.

To address this, eliminating the project of the Greenpoint spur to the backbone phases 1 through 5, would need to reduce the restriction or C.N.G. would need to be injected at another N.Y.C. location that can get the gas to where it is needed. Sorry, for the long windedness, I'm just quoting what was said.

MR. DECICCO: No, just -- yeah, sure. That's a good question. And we -- we heard a similar question this afternoon. And I'm going to turn that piece over to Pete in one second. We just -- because

I -- I use the term non-pipes solution. You know, we considered a lot of alternatives very publicly and got feedback.

And clearly, you know, what -- what was not favorable in terms of the solutions that we said were options. You know, were new pipeline solutions, right. So -- so that clearly was feedback we got said, don't want to see new pipelines.

And -- and that's why this project does not include new pipelines into our system. But it does include new equipment, absolutely. But -- but located as -- as an existing facility that's already store -- L.N.G. tanks, excuse, me and allows us to use them more efficiently. So I -- I made that distinction by saying this is not bringing a new pipeline into our region.

It's not a new pipeline, even on our system to deliver this additional peak capacity. It's -- it's a different type of asset that's -- that's leveraging existing infrastructure. I'm going to turn it to Pete to answer the more technical question around -- around that particular response.

MR. METZDORFF: Okay. I'll keep this down here. So with regard to the statement that you

had read back, when we were looking at bring -- bringing some solution into the Greenpoint property, the first choice that we had was to put in the vaporizers. That was our preferred project.

However, due to the long lead times, and what have you that go with all the materials and equipment that we have to purchase, secure contractors, all of that, we weren't sure about how quickly we would be able to get all that equipment together and in service. So we also had a second backup option that we were looking at, at the time, which was to do C.N.G. or compressed natural gas injection.

That was a less preferable solution because that would require bringing in trucks that had C.N.G. as opposed to L.N.G. I want to make sure I make that distinction. And if we were doing the decompression of compressed natural gas that would have to go into the 350 P.S.I. high pressure system. We would not be able to put that into the low pressure system. Okay.

A.L.J. LEARY: I get too much feedback here let me see.

MR. MERTZDORFF: Okay. Sorry. So I

don't -- I hope this doesn't get too loud. So if we were to go forward with a compressed natural gas option, that would have to go into the 350 P.S.I. system because the low pressure system that the vaporizers are going into, would not be able to take gas at that pressure at the proper rate.

It's too much of a -- of a decompression. So when we were looking at options, we said, okay, if we can't get the vaporizers done in time, we have to go with compressed natural gas that has to go into the high pressure side.

Once it became clear that we would be able to deliver the vaporizer solution, vaporizers 13 and 14, we withdrew the plans to do compressed natural gas within Brooklyn, as part of the permitting process that we ran with the D.E.C. And so that is no longer part of so -- so that's why you may be seeing a disconnect.

We were looking at Plan A which was vaporizers 13 and 14, Plan B being compressed natural gas. When compressed natural gas came off the table, the 350 P.S.I. system was no longer a part of the equation. The vaporizers that we're considering tonight can only go into that low pressure system.

The systems are physically disconnected. And you cannot push -- you would essentially -- best example I can give is, if you push the valve on your tire, the air will come out. But the only way air goes back in is if you can compress that air and put that air back into your tire to inflate your tire again, this is the same thing.

You would have the vaporizer is going into a system that can't push gas into the other system because the pressure is not high enough. So it can only go into the low pressure system. So they are separate from that standpoint. Does that clarify and answer the question that you raised?

A.L.J. LEARY: Great, thank you.

MR. METZDORFF: All right. Thank you.

A.L.J. LEARY: Okay. Other questions? Wow. Come on up.

MS. WILLIAMS: Hi, my name is Anna Williams. I am a resident of Greenpoint. And I have a few questions. Just to clarify, this is the same National Grid that's a publicly listed company on the London Stock Exchange and the New York Stock Exchange, is that correct?

MR. DECICCO: So -- yeah, our parent company --

MS. WILLIAMS: You are part of?

MR. DECICCO: -- is located -- is listed on the stock exchange company.

MS. WILLIAMS: Okay. Perfect. And I was maybe not understanding, but as I heard earlier in the afternoon that I guess I have two lines of questioning. One is about rate hikes. And the other is about the necessity of the project. I was told that this --.

A.L.J. LEARY: Excuse me a second.

MS. WILLIAMS: Yes?

A.L.J. LEARY: You're going to ask questions about a rate hike. And what was the other thing?

MS. WILLIAMS: The necessity of this project?

A.L.J. LEARY: Okay. The rate hike -- .

MS. WILLIAMS: I was just -- so my question about the rate hike is, is this infrastructure directly related to a rate hike for --

A.L.J. LEARY: So there is a --

MS. WILLIAMS: -- National Grid residents.

A.L.J. LEARY: Tell them about the surcharge of --

MR. DECICCO: Yeah, so -- so --

A.L.J. LEARY: Yes.

MR. DECICCO: So the way that we have this setup is to say we did not put this project into our rates because we wanted to go through this process, right. So when we reset rates two years ago, now already, we did not include this project because we agreed instead, we would -- we would go through this assessment.

And then only if we did that and only if we also were achieving our energy efficiency demand response, electrification goals, would we then be able to recover the costs. So ultimately, if we -- if this project does go into service and if we are able to meet those goals, we would be able to recover the cost of in terms of a rate plan. That's -- that's correct.

A.L.J. LEARY: So I want to clarify this for everyone, this is important. What's before the Commission right now, is approval to impose

what's called a demand capacity surcharge, correct Mr. Decicco?

MR. DECICCO: That's correct, yes.

A.L.J. LEARY: Okay. So this -- if the independent consultant comes back and says go forward and the Commission agrees, a demand capacity surcharge will be assessed against the customers in the rate area or the service territory. Okay.

MS. WILLIAMS: Okay. And in terms of the necessity of this project, it sounds like it's from what I'm understanding from the presentation that it's for ease of access during the coldest days of the year. Is that correct, so that consume -- that customers can consume more gas to heat their homes. Is that correct?

MR. DECICCO: Well, not necessarily the consumer gas, I mean on those coldest days of the year is when we see the most demand of our system as Chris described in those mornings when everyone's turning on -- I'm sorry, we moved the mic a couple times. It's -- it's because you know, we need to plan for the -- for the moments when our gas system is -- is stressed to the max.

You know, when customers need the most

gas, because that has been the coldest because they're heating their homes at the same time. And really, what we're saying is that we need this asset in order to meet that peak demand.

UNIDENTIFIED SPEAKER: Speak louder, please.

MR. DECICCO: Sure, I'm sorry.

MS. WILLIAMS: Okay. So I guess my question is related back to the surcharge. If this is a necessary project for your company to increase consumption of gas or however you'd like to put it. My question is, why does it -- the rate need to pass -- the rate charge needs to be passed on to the consumer because I see in the U.K. that your maximum return on equity is between 4 and 5 percent.

But in the United States, maximum return on equity is 9 to 10 percent. And, you know, profits for your company were up 11 percent in the fiscal year 2021 to 4 billion dollars. And I'm wondering why it can't be taken out from the profits that you currently have?

MR. DECICCO: Yes. So under the terms of our rate plan, we are allowed to earn up to what's actually 8.8 percent on our investments in -- in New

York -- Downstate New York. We're not earning that right now because it's expensive to run this business.

We're being hit with inflation and other costs as every business is and so, you know, we're not even earning what we're allowed to earn under the terms of our rate plan. Now the way that rates work in New York State is that the extent these assets are used to serve customer needs, we put them in our rate base and then we recover them as an amount of our costs.

Again, what we've distinguished here is, you know, we've placed that at risk, at risk by if these in fact are determined not to be needed, we're not able to recover the costs. Again, if we don't -- if we don't hit other goals that are unrelated to these projects, were not able to recover the cost.

So again, in our view, that's us putting this at risk. That's us saying, we need these projects. And here's our -- our evidence of our commitment to that in -- in novel ways.

MS. WILLIAMS: I just have one kind of last question to that.

A.L.J. LEARY: Okay. Remember --

MS. WILLIAMS: Yes.

A.L.J. LEARY: -- there's a lot of people in this room.

MS. WILLIAMS: Yes, okay.

A.L.J. LEARY: Okay. So I'm going to ask --

MS. WILLIAMS: Yes.

A.L.J. LEARY: -- if you could --.

MS. WILLIAMS: All right, I'm going to step down.

A.L.J. LEARY: Thanks. Okay. Next questioner? Anyone?

MS. DRURY: I have a question.

A.L.J. LEARY: Okay. Come on up.

MS. DRURY: Hello, my name is Ash Drury. I'm from the No North Brooklyn Pipeline Coalition. I'll be making my comment later. But we know that the National Grid facilities that the vaporizer they built on is a 110 acres of some of the most polluted land in New York City and sits on top of one of the biggest Superfund sites in the East Coast.

And I have two questions related to

that. The first one is that if you anticipate that the pollution created from the vaporizers will stay in those 110 acres. And also, if you have any plan for cleaning up and holding responsibility for this extremely polluted land that you're on top of and continuing to profit off of.

MR. DECICCO: So well, why don't I just talk about environmental remediation, you know, we spend more than 70 million dollars a year on environmental remediation programs, cleaning up legacy issues, you know, like the ones you're describing, obviously, you know, that's something that's -- that's a commitment, we have to make and something we have to do.

With respect to this project, you know, our -- our anticipation is that it will not contribute further to the issues that have -- that have impacted Greenpoint. Chris, I don't know if you want to speak to that at all, just in terms of the vaporizers.

MR. METZDORFF: Yeah, so just to reinforce, you know, the vaporizers that we're planning to construct as part of this project are the most efficient vaporizers in the market. They

achieve up to 96 percent efficiency. And so these vaporizers would offset the use of some older vaporizers that we do have at the site.

So thus in turn it would lower our greenhouse gas emissions by utilizing these vaporizers more frequently than we would utilize the older vaporizers. So there's -- there's a net benefit here too in terms of installing this project, being able to support our customers reliably and reducing our greenhouse gas emissions from the facility.

A.L.J. LEARY: So the 70 million dollars the – what -- what of the 70 million is spent at Greenpoint?

MR. DECICCO: You know, Judge, I don't -- I can't say that off the top of my head, but it's -- it's -- it's spent within our KEDNY or Brooklyn Union legacy business. We spend significantly less than our Long Island business.

A.L.J. LEARY: Significantly less?

MR. DECICCO: On our Long Island business.

A.L.J. LEARY: Okay.

MR. DECICCO: It’s -- it's that's

money that's spent in the Brooklyn, Queens, Staten Island area every year.

A.L.J. LEARY: Okay. Next question. Let's see, over here. I'm going to go that way, I guess.

MR. SMITH: Well --

A.L.J. LEARY: Hi.

MR. SMITH: -- well, hello -- hello. It's good to see you again, it’s working. Good evening. It's good to see you again. I was late. So I have a questions about the bills, so I'll say so to the North Brooklyn pipeline, the current pipeline, we do not want to pay, be paying for the -- for the current -- paying every month on our gas -- on our bills. So my question is, do we -- do we have to pay 66 dollars for natural gas?

MR. DECICCO: Yes. So --

MR. SMITH: That's the question.

A.L.J. LEARY: Can you just say your name?

MR. SMITH: Yeah, I'm sorry. My name is -- I'm sorry -- my name is Clifton Smith. And I live in the Bronx.

A.L.J. LEARY: Thank you.

MR. DECICCO: Yeah. And I -- I appreciate that -- that question. Obviously, affordability is a key issue for our customers right now dealing with the impacts of the pandemic. We -- we tried very hard in our last rate case to mitigate the impacts of our rate filing. We froze customer bills for a year and had fairly modest increases the following two years.

Obviously, there's pressure on everyone from inflation and commodity costs. And that's a challenge we appreciate dealing with. I should have mentioned before we have two customer advocates in the room with us tonight. If people have questions about their bills or about opportunities to avail themselves to -- to programs that could help offset the cost of their energy.

You know, you should certainly have a chance to talk to them, they're in the back of the room, and we'd be happy to answer questions individually one off on -- on -- on your particular situation and your energy bills.

A.L.J. LEARY: Okay. Next question. Let me just see right here.

MS. PEARSON: Hi, my name is Anya

Pearson. It's nice to see you all in person and not just as voices on a computer. Yesterday, you mentioned that the loop created by Phase 5, which was halted recently would have increased the like, feasibility of like, natural gas or liquefied natural gas moving throughout your North Brooklyn system. Is that correct?

MR. DECICCO: Not exactly. But it's -- but yeah, if there's a question, it's -- yeah.

MS. PEARSON: Right. So and then you have this like 16-inch pipe that's in the ground now, which was built in 1950. So I'm wondering like, how much longer you see the feasibility of the system, without actually building new pipelines that you are trying to avoid --

MR. DECICCO: Yeah.

MS. PEARSON: -- in the first place?

MR. DECICCO: So I'm going to let maybe Pete or Chris answer this question. But -- but projects like the L.N.G. supply we have on system, it has unique benefits because you know, we're -- we're subject to -- we could have a pipeline upstream that would -- would stop, you know, have an issue and then we would have a supply issue, right?

This -- this project is on our system. It gives us a unique benefit of having a local supply source that we can utilize in an emergency or to meet peak demand. And so you know, this asset would be used as long as we're serving gas customers in New York State. I think that that's fair to say.

I know, Pete, if you want to answer specifically about the pipe itself.

MR. METZDORFF: So with regard to the 16-inch pipe itself --

MS. PEARSON: Uh-huh.

MR. METZDORFF: -- there is a process called cathodic protection that we use on all the steel pipe that we have on the system that -- that 16 inch is a part of. And if a pipe is properly protected using a cathodic protection system, we can extend the life of that pipe well beyond 100 years.

The issue becomes whether or not there are other issues with that pipe. One of the things that can happen on that -- the number one thing that happens to a gas pipe out in the system is third party damage, somebody's digging in the street --

MS. PEARSON: Uh-huh.

MR. METZDORFF: -- and puts a backhoe

into it. We can only do what we can to mitigate that. There is an 811 law, where people are supposed to call in for mark outs to prevent things like that from happening. So as long as everybody's abiding by the rules and what have you, we can extend the life of that 16-inch main for many years to come still.

MS. PEARSON: Are there contingency plans in place for if some idiot does hit it with a backhoe?

MR. METZDORFF: As it stands right now. It's at the same risk as any gas main, water main, sewer pipe, whatever is buried in the ground out there electric cables, any of that stuff that's in the ground is --

MS. PEARSON: Uh-huh.

MR. METZDORFF: -- is possible to be hit in one of those types of scenarios. If something happens to that pipe, depending on what time of the year it is, we'll determine whether or not how much of a problem it is.

MS. PEARSON: Okay. Thank you.

A.L.J. LEARY: So I want to advise everybody, this 811 thing is very effective because every month our Commission meets and has -- I don't

even want to tell you how many penalty actions against people who do this damage. Because it's damaged, it's caused by a third party, not the company.

And guess who pays, the ratepayer pays, right? Isn't that basically what happens? So there's a lot of enforcement going on and it's working. So I think each month there are fewer and fewer people who dig and do that damage. At least that's what I'm hoping you say. Okay. Next question. We're going this way.

MS. BERGMAN: My name is Jean Bergman. I live in Manhattan. With the price of natural gas spiking and demand increasing because of the situation in Eastern Europe, what guarantee can you give us that you're not going to be selling liquefied natural gas to the European or other international markets?

MR. DECICCO: Yeah. Well, I can guarantee that to you. No uncertain terms, you know, we have no ability first of all, to sell that gas out of our tanks, right. These are customer assets that are -- that are used exclusively to serve our customers. The supply is critical. I mean, our core

mission is to make sure our customers have -- have heat on the coldest days.

We have no interest in selling this to any third party, or having it go anywhere, nor could we do it physically if we wanted to. But -- but you have my absolute assurance that we are not selling this gas to anyone. It's just not -- not possible nor is it that we have any interest in doing that.

MS. BERGMAN: Thank you.

A.L.J. LEARY: Next question.

MS. SPINDELMAN: My name is Margot Spindelman. So at an earlier hearing yesterday, I think I'm losing track. You are citing now redundancy as a major concern in case other supply sources aren't sufficient. So can you tell us what close calls you've experienced in the last 10 years? And how close those calls were -- how close were we to running out of gas?

MR. DECICCO: Yeah, so actually and I'll turn it to Chris, but -- but several major upstream pipelines that have had issues. I think the Enbridge Pipeline issues two years ago were probably the most significant we've had where they significantly curtailed their deliveries to the -- to

the New York region.

And that's something that we don't have complete control about. What makes these on-system assets, you know, or gives us comfort with them, or confidence in them is that we control them. So you know, we're not beholden to -- to upstream pipelines to deliver gas if we have on-system supply contingency.

Chris, why don't you take that?

MR. CONNOLLY: Yeah, just to share a little additional detail. So we have a number of interstate pipelines that bring gas many miles into our region to support our customer needs. And what we've seen over recent years is an increase in what's referred to as operational flow orders or O.F.O.s, as we refer to them.

So those O.F.O.s have been issued on a more frequent basis by the pipeline companies. And that's really a message that they are curtailing operations. And they're holding us to certain quantities that we receive at our gate stations onto our systems.

So with the frequency of the O.F.O.s what drives a lot of that is that approximately every

500 miles on those pipelines, is a compressor station. And what we're seeing is compressor station failures along the way. Those compressor stations boost the pressure in the gas to make sure they can get out to the end of the system.

And as I mentioned earlier, we are at the end of the system. So those compressor station failures, those outages really affect our ability to take the gas that we need into our system. So these L.N.G. facilities like Greenpoint play a critical role to ensure that we have supply on hand to not only support our customers during those coldest days, but we have that supply on hand to support our customers if we're curtailed with the gas that comes to our gate stations onto our system.

MS. SPINDELMAN: So two years ago, when you had the problem with Enbridge, can you tell me what percentage of gas you ended up being shorted? And you know, how much did you have to make up for?

MR. CONNOLLY: Yeah, I'm sorry, I don't have those numbers with me here this evening.

MS. SPINDELMAN: Because you have said that I think that L.N.G., the portion of the -- of the whole gas portfolio is 11 percent, right, so -- ?

MR. CONNOLLY: And that 11 percent represents a peak design day. So a zero degree average temperature day for a 24-hour period.

MS. SPIDELMAN: Right. So it would be really helpful to know that if they were to curtail the supply, were they curtailing a 100 percent of the supply, one percent of the supply, you know, it makes an enormous difference if you're talking about redundancy?

MR. CONNOLLY: And I'll just answer this one way. If we were ever curtailed a 100 percent of the supply from any one of our gate stations, the L.N.G. supply would not be able to satisfy the total need that we need to make up the difference --

MS. SPINDELMAN: Exactly, exactly so --.

MR. CONNOLLY: -- for our customers. So that -- but that's something we can't control.

A.L.J. LEARY: So Ms. Spindelman.

MS. SPINDELMAN: Yeah. Sorry, sorry.

A.L.J. LEARY: Remember.

MS. SPINDELMAN: Yeah.

A.L.J. LEARY: Let’s have respect for

others, we do not interrupt and please do not interrupt me --

MS. SPINDELMAN: You're right.

A.L.J. LEARY: -- or them. And I am sorry to have interrupted you. But your time is up, your question is over, goodbye.

MS. SPINDELMAN: Okay.

MS. SCHINDELL: My name is Laura Schindell. I organize with Food and Water Watch. I live in Astoria, Queens. I want to make sure I'm understanding your presentation correctly. When you mentioned that there are existing vaporizers, you named a few high pressure and low pressure. You described the 13 and 14 proposals could provide backup or redundancy.

And you also mentioned that you don't need -- you wouldn't intend to run them all. You can run one or two and increase running more as you need to. I'm curious, how many vaporizers were used last year? And you said you had four operational right now. When is the last time that all four were even used?

Because it sounds like we are -- the proposal is to build backups for backups.

MR. CONNOLLY: So I'll answer the

question in terms of last year, the winter of '21, '22, we ran the plant 14 times. Now -- now, during that time period, I can't tell you exactly how many vaporizers we ran during those days that we -- that we had to vaporize the gas out into the system.

But we ran a total of 14 times last year. And some of those times I'll highlight is that it wasn't all weather driven. To the earlier question, there were some operational flow orders that were issued and so we needed to run the plant in order to maintain system pressures out on the system.

MS. SCHINDEL: But you're not sure if you needed to run all existing ones last year all at one time?

MR. CONNOLLY: I'll tell you we did not need to run all the vaporizers last year. So again, we have six vaporizers existing at the plant and one of which is redundant. And so we did not have a need to run five vaporizers last winter.

MS. SCHINDEL: And do you know the last time you did have to run all of them, if ever?

MR. CONNOLLY: I -- I don't have that information on hand, I'm sorry I don’t have it here.

MS. SCHINDEL: Thank you.

A.L.J. LEARY: Thank you. Next question we have -- we have time for one, we need to start the public statement hearing for those folks that need to leave. You've had your hand up for a long time. The young woman who's standing.

MR. DECICCO: One at that back.

A.L.J. LEARY: Come on up then. All right. You're next, okay?

MS. TROWELL: Is this adjustable?

A.L.J. LEARY: Yeah, it is I think, but there you go.

MS. TROWELL: Okay.

A.L.J. LEARY: Is that okay?

MS. TROWEL: Thank everybody. My name is Celina. I am from Brownsville, Brooklyn. My question is, given a previous and original representation of the critical role of the connections of phases 1 through 5 to the L.N.G. facility, isn't your position that the projects are separate and segmented over the narrow view of the expansion?

Because doesn't New York City -- New York State Law require review of the projects that are interconnected together?

MR. DECICCO: So why don’t you take the engineering part.

MR. CONNOLLY: Yeah, so again, as I discussed earlier, the M.R.I. project phases 1 through 4, are in service and complete. Phase 5 has been suspended. We're not planning to pursue phase 5. And the driver for the M.R.I. or the North Brooklyn Pipeline was to ensure efficient use or efficient movement of the gas through the system to support our customer needs on those coldest days of the year.

MS. TROWEL: Okay. Thank you. So also didn't you say that phase 5 of the M.R.I. Project was necessary for the K.E.D.N.Y.’s plan to utilize compressed natural gas at Greenpoint? So specifically, did you not state that the 16 -- I'm going to quote here, " the 16-inch transmission main that runs from the Brooklyn backbone line to the company's Greenpoint property is the only way to bring gas into or take gas out of the Greenpoint on the transmission system.

If the M.R.I. phase 5 is not constructed, that will continue to be the case and gas will have to flow through this 16-inch main and a

portion of the Brooklyn backbone to reach M.R.I. phases 1 through 4. If C.N.G. is utilized in Greenpoint under these conditions, it will reduce the flow of gas for the company from Con-Ed at Newtown Creek instead of flowing to Eastern Brooklyn and Queens, where it is needed to support customer growth.

This has significantly -- significantly reduces the eff -- the efficacy of injecting C.N.G. in Greenpoint. So to support growth in N.Y.C. using C.N.G. injected in Greenpoint, M.R.I. phase 5 is needed to utilize C.N.G. for growth instead of compensating for pressure losses." That was a quote.

MR. DECICCO: I just -- I think Pete answered a very similar question before, which is -- and I appreciate the question.

MS. TROWEL: Well, for the record, it's helpful.

MR. DECICCO: Yeah, I know. And then this is complicated, so I'm not -- and I appreciate why -- why, you know, it's -- it's -- it's very technical, but we're not intending to -- to deploy C.N.G. at -- at the Greenpoint facility. That was,

as Pete described, sort of one of the plans under consideration, but because the L.N.G. vaporization plays a much better operational role, it's a much better solution.

We're not pursuing C.N.G. anymore. So -- so everything we said there, you know, was -- was accurate, although no longer relevant because we're just not doing that anymore.

A.L.J. LEARY: Thank you. Okay. Come on up.

MS. FRACZEK: Yeah, I just -- I want some clarifying questions, I know you've been telling --.

A.L.J. LEARY: You're name please.

MS. FRACZEK: My name is Kim Fraczek, as you know. You've been telling the -- the community here that I -- that I live in, you know that we're confused and that the M.R.I. project isn't connected to the vaporizers.

A.L.J. LEARY: Ms. Fraczek do you have a question?

MS. FRACZEK: Yeah, I do.

A.L.J. LEARY: Then ask the question.

MS. FRACZEK: I am. So right now, the

M.R.I. project is not connected to the vaporizers, correct?

MR. DECICCO: Correct.

MS. FRACZEK: Okay. So you need phase 5 in order to connect the vaporizers to the pipeline, correct?

MR. DECICCO: No, I just -- I want to be clear. I've never said that anyone is confused. I mean, this is technical thing.

MS. FRACZEK: You said that last night in the hearing.

A.L.J. LEARY: Excuse me.

MR. DECICCO: I don't, if I -- if did, I apologize.

A.L.J. LEARY: I'm going to remind everyone who comes up here that you cannot interrupt the company or me. And we will not interrupt you unless you are doing that. Do not interrupt the company or me. Okay?

MR. DECICCO: These are highly technical issues. I'm certainly not an engineer. I have a hard time understanding them myself. I'll speak solely for me. Pete could explain again, why these projects are not connected and if -- happy to

do that. But -- but I think we've treaded this route a couple times.

And that's why, you know, I want to make sure we're -- we're addressing the questions, you know, in satisfaction, but clearly, there still seems to be some questions in this space.

MS. FRACZEK: I just want to know why you might be under estimating the intelligence of the communities that are represented in this room right now?

A.L.J. LEARY: Okay. That's it. Next question. I'll take one more. Nobody -- all right, come on up quickly.

MS. RODRIGUEZ: Hi, my name is Pati. I'm here representing the ... I grew up in Bushwick and the M.R.I. pipeline the north -- the North Brooklyn Pipeline is running near in my home next to my daughter’s school putting us all in danger. So what question did I have, I have three questions.

Didn't you predict more significant expansion with the L.N.G. upgrade and phases 1 to 5 to 18,979 customers?

MR. DECICCO: Yeah, so I think -- God, I'll just say I'm a bit unclear where you quoting

that number from, but again this is not an expansion of the L.N.G. facility. We are not expanding the L.N.G. facility. We are adding additional vaporization to allow us to heat the gas to get it out to the system fast to support our customers' needs during those coldest days.

MS. RODRIGUEZ: In Exhibit 735, didn't you state that if the M.R.I. is completed to phase 5, C.N.G. is injected at Greenpoint at a rate of 2280 hour for eight hours and assuming the available market that the 2280 hours that M.R.I. would make available -- could serves up to a maximum of 18,979 equivalent residential customers?

MR. DECICCO: As it was stated earlier, we have no plans to pursue a C.N.G. project at the Greenpoint Energy Center.

MS. RODRIGUEZ: Okay. Regardless, is it the New York Brooklyn Pipeline, the M.R.I. pipeline an important part of the distribution system that brings gas to and from the L.N.G. facility?

MR. DECICCO: Pete would you want to take the detail on that please.

MR. CONNOLLY: So the short answer to that is, no, it is not because the only gas that goes

in to and out of the Greenpoint facility goes along the existing 16-inch main. M.R.I. phases 1 to 4 that are in service right now connect from the Brooklyn backbone back to the line that we refer to as the southern line.

You then have to proceed a long Brooklyn backbone to the 16-inch line that's goes into Greenpoint. M.R.I. phase 5 if it was constructed would create a loop. M.R.I. phase 5 is not moving forward. So M.R.I. -- since M.R.I. phase 5 is not moving forward there is no connection between the Greenpoint property and M.R.I.

A.L.J. LEARY: Thank you. Okay. That's it. I'm sorry we really need to start the public statement hearing. But what I'm going to do is I'm going talk to you a little bit about how it's going to proceed and I have public officials that are going to go first, they are busy, busy people.

Having said that, I want to talk to you about what this is and is not. It's not an evidentiary hearing. You're going to make a statement. I am not going to answer questions. I can't, I am just here to sort of oversee things. I'm going to call people based on this card -- these

cards that you filled out when you registered.

What I'd like to do is call a name and then call a second name who will be on deck, both people should come up to the microphone. The person that's called second doesn't have to come up immediately, but they should be here when the speaker finishes.

All comments must be limited to less than three minutes, I have a ton of cards up here, please respect your colleagues and friends and neighbors in this room and allow everyone to be heard. If you have provided a statement already at the virtual public statement hearings yesterday, or at this afternoon's public statement hearing, you will not be called.

We have a ton of people and if we've heard you already, your comments are already on the record, you do not need to repeat them, okay. So I want everybody to be heard, that's my objective.

All comments, as you know, are part of the record of the proceeding that both the independent consultant as well as the Commission will consider. If you're going to submit a written comment, if you're not comfortable coming up to a

microphone tonight, do so if you can by November 14th, but I think the Secretary will accept comments after that.

But November 14th is in that notice, so that's why that notice is a good thing to take home. As you know, the court reporter who's sitting to my right is trying to create a very good record of what everyone is saying, so remember to speak clearly. If you can take your mask off, if you're comfortable, that helps.

But you know, be measured. No need to, you know, yell. I have a really loud voice and it might sound to some that I'm yelling right now. Okay. And -- if we don't reach everyone tonight, which I hope we do, but we may not. I'll tell you why we must close the hearing by nine o'clock, everyone must leave.

That is why I had to rush along the question and answer period and we're a little late starting the public statement portion. So we must be out of here by no later than 9, every person out. So we're going to end by about five minutes to nine and I hope all of you will respect the folks who are hosting us, who have to close the facility and lock it up, they

want to go home too.

Again, please take the notice home because there will be other opportunities for you to comment, particularly after the independent consultant's report is out. I'd like to -- also I neglected to thank one of the people that was instrumental, and she is an elected representative, she is your representative in the assembly.

Her name is Emily Gallagher and I just want to thank her. And I want -- I want to thank her and also her Chief of Staff, Andrew Epstein who was -- they were instrumental in -- in helping us get a place in your community to do this hearing. And so thank you so much, both of you. With that, I'd like to call -- Ms. Gallagher, are you ready to go?

MS. GALLAGHER: Yes.

A.L.J. LEARY: Come on up.

MS. GALLAGHER: Thank you very much, Your Honor. My name is Emily Gallagher and I am a 16-year resident of Greenpoint, Brooklyn, which I proudly represent in the New York State Assembly. I'd like to thank the Department of Public Service and Administrative Law Judge Leary for convening us tonight, especially at this historic institution,

which has served our community for 50 years and counting.

I want to express my respect and admiration, first and foremost for the engineers, operators, and safety personnel and National Grid and Greenpoint, some of whom I've had the opportunity to meet when I toured the facility a few weeks ago.

They do a highly skilled and difficult work to keep us warm in the winter and their expertise and dedication will be essential to the success of clean energy transition that we must made -- make. We're here tonight to talk about National Grid's request to spend 65 million dollars of what will be our ratepayer money to build two new liquefied natural gas vaporizers on the banks of Newtown Creek.

It comes at a dire moment for our planet as human caused climate change pushes us to the brink of catastrophe. The intergovernmental panel on climate change representing the overwhelming consensus of scientists around the world finds that greenhouse gas emissions must peak by 2025.

And then rapidly decline if we're going to have any chance at limiting the future

warming to 1.5 degrees Celsius above pre-industrial levels. That's less than two and a half years from now. The climate destruction we're witnessing in Puerto Rico, Pakistan, and around the world is the result of one degree of warming. It can get so much worse.

But with vision, courage, and insistence, we can make the clean energy transition in the timeline that we need. Federal policy is finally catching up with the reality, the cost of renewables are plummeting, even as we continue to witness the international conflict associated with oil and gas.

But we need to stop digging ourselves into a deeper hole right now. Investing in new fossil fuel infrastructure in 2022 is climate denial. And to make all of us pay for that climate denial adds insult to injury.

National Grid has claimed that these vaporizers are required for efficiency and reliability, that they won't slow progress on our legally mandated climate goals, and that they are necessary for those couple of days of the year when they hit peak demand. I'm dubious and you should be

too.

National Grid spends significant resources lobbying to undermine, delay, and obstruct the policies that are necessary for decarbonizing our State in line with the Climate Leadership and Community Protection Act.

Along with the American Petroleum Institute that tried to kill President Biden's Inflation Reduction Act, National Grid has funded a grassroots of fake -- excuse me, a fake grassroots organization called New Yorkers for Affordable Energy that ran misleading television ads across New York State, fear mongering about the very policies that we need to implement the C.L.C.P.A.

They'll surely be back again in Albany this year. Why do they do this? Is it in the best interest of their customers and the people of New York? The answer is simple. They are a for-profit, investor-owned corporation that's responsible to their shareholders first and foremost.

There's still lots of money to be made in extraction, production, transporting, and burning of fossil fuels like national -- natural gas. Unfortunately, it's the doom for all of us. When the

C.L.C.P.A. was passed in 2019, it created a Climate Action Council to formulate the policies necessary to achieve de-carbonization in New York.

Their draft scoping plan released last year states that the current gas distribution system will need to be downsized substantially as this transition occurs. And while it does allow for some limited investments in traditional infrastructure to maintain reliability, greater scrutiny of such investments is warranted to ensure that utilities do not exacerbate the problem of stranded assets and make it more expensive to fully decarbonize the fossil gas sector, and that is all from the Climate Action Council.

I respectfully submit that spending 65 million dollars of our money on new gas infrastructure does exactly that. And I call on the Department of Public Service, the Department of Environmental Conservation, and Governor Hochul to deny these permits and the rates increases that they seek. Thank you.

A.L.J. LEARY: Thank you. Remember, three minutes.

MR. RESTLER: Good evening, my name is

Council Member Lincoln Restler. I live a few blocks away. Before I begin my -- the testimony that I drafted, I want to just thank the Judge and the Public Service Commission for hosting us.

I do feel like this is democracy in action, all of us having a chance to ask questions of National Grid. To push, to prod and to poke holes in what is a profoundly flawed proposal. Today is the day that we must end all new fossil fuel infrastructure.

UNIDENTIFIED SPEAKER: That's right.

MR. RESTLER: And -- and I hope that the independent consultant and the Public Service Commission hear this community in one loud voice, your Council Members, your Assembly Members, your State Senators, your Congress Members, even the Majority Leader of the U.S. Senate have all spoken in one voice saying, hell no to this pipeline, and hell no to these new vaporizers.

I strongly oppose National Grid's plan to build two new vaporizers in the Newtown Creek facility. Last week, I was proud to co-introduce resolution 312 in the City Council with my colleague Council Member Jennifer Gutierrez and 12 of our

colleagues.

Indeed 11 of 16 council members in Brooklyn have signed on to our legislation where we call on the New York State Department of Environmental Conservation to deny National Grid's permit for the vaporizers and called on the Public Service Commission to oppose rate recovery for the gas vaporizing -- gas vaporizers or any associated infrastructure, and to oppose any requested variants to truck in liquefied natural gas.

We are long past the time to be building new fossil fuel infrastructure in our communities. The climate crisis is here now. It is the greatest threat facing New York City and we must put all of our resources into renewable energy. Fossil fuel usage is already declining and this new infrastructure will soon be obsolete as we transition to renewable energy.

While I recognize the need for redundancies to ensure our residents have heat all winter long, the existing vaporizers have been able to satisfy demand and National Grid has not demonstrated that new infrastructure is necessary at this time. Utility customers should not be forced to

pay for expensive irrelevant updates to outdated fossil fuel infrastructure.

Further, these vaporizers could increase emissions from the Newtown Creek facility by over 30 percent at a time when the international panel on climate change has called for, "immediate and deep emission reductions across all sectors".

They are quite simply a step in the wrong direction. The North Brooklyn community has already bore the brunt of health impacts from the fossil fuel industry for far too long. We cannot subject our neighbors to further health and environmental risks, especially for unnecessary costly infrastructure that will serve only to prolong our dependence on fossil fuels and hasten the impact of the climate crisis.

I urge the Public Service Commission to vote against the rate recovery for this project and to protect our communities. Thank you.

A.L.J. LEARY: Thank you. Dan Wiley -- Dan Wiley. Ryan Wood on deck.

MR. WILEY: Thank you for holding this. My name is Dan Wiley. I'm one of two district directors for Congresswoman Nydia Velazquez.

Congresswoman Velazquez represented Greenpoint, Williamsburg 20 years ago, she has the Southside. The new district will re-include up through Newtown Creek through to Astoria now with the redistricting.

On behalf of Congresswoman Nydia Velazquez, I want to give this statement. At a time when scientists are sounding the alarm bells and communities across the country are directly experiencing the harsh effects of climate change, and we've seen the devastation most recently in Puerto Rico.

We must work together to decrease our reliance on fossil fuels, which only exacerbate this crisis. Now is the time to make a just transition to renewable energy that is environmentally friendly and sustainable.

When we prioritize clean energy, we're investing in the health of black and brown communities, which continue to disproportionately bear the burden of environmental racism and long term health implications. Our communities deserve better. We need to leverage federal investment to reduce emissions and foster sustainability to save our planet.

The recently passed infrastructure bill and this is the most important point that the congresswomen can make, marks a critical first step in moving our country toward President Biden's goal of net zero emissions economy by 2050.

That includes -- now, we see that this investment in fossil fuel is 65 million, but this bill is 65 billion dollar investment for clean energy transmission and 50 billion to make our infrastructure more resilient against extreme weather events.

Congresswoman Velazquez will continue to advocate for clean and renewable energy sources in Congress and -- and stand in solidarity with all the advocacy groups and residents here on the ground as we fight to protect our communities and earth. She does not believe that we should be footing the bill for investing in more fossil fuels that's just part of the problem. Thank you.

A.L.J. LEARY: Thank you. Steve Fox on deck.

MR. WOOD: Hi, hello. How are you? My name is Ryan Wood, I live in the neighborhood. I didn't know this was happening today until I walked

by out front. This is very nerve wracking. It's cool to see all my elected officials in person for the first time.

Here's my public comment; last weekend I -- I live in Greenpoint, living over by the waterfront. It's a -- it's a very nice -- very nice place to live and I live in what's called the garden apartment, which I think is just realtor speak for living in a half basement.

And so what I did last weekend was, I got a bunch of sandbags and I drilled a big hole and I put a pump in the hole and I took all the sandbags and I fortified my front staircase, because last hurricane season my apartment flooded.

I've been there for 10 years. It's the first time it had flooded. And my public comment is that when I am being asked to pay additional money to expand natural gas infrastructure in the place that I call home, I buy that it's a good strategy for National Grid. And I buy that there may be some utility in having a backup, but I don't need National Grid to meet winter energy demands.

I need National Grid specifically to not be able to meet winter energy demands here long

term, not National Grid, somebody else. And I know that that's not your problem, but I'm focused on resiliency by sand bagging up my basement. I think if we're going to be asked to pay for things it should be to increase resiliency, not put fuel on the fire, thanks.

A.L.J. LEARY: Thank you. Steve Fox and Fabian Rogers is on deck.

MR. FOX: Hi, everyone. My name is Steve Fox. I live down the road on Milton Street. Yeah, so as you're aware, there's been a ban since 1976, it's actually a statutory ban in New York City that restricts the storage of fuel for natural gas and -- and expansion of liquefied natural gas facilities.

And this facility was grandfathered in with the understanding that the facility wouldn't really expand, you know, and adding these two vaporizers will constitute an expansion of use capacity, even if it doesn't expand its input capacity.

Even if that remains the same it’s still a larger flow. It's clear that this facility violates the spirit of law, if not the exact letter

of it. Although I do want to note that liquefied natural gas facility under the law is defined as a structure that stores or converts liquefied natural gas.

So these vaporizers arguably are converting liquid natural gas into natural gas, therefore constitute a facility and expansion of facility, potentially new facility. I hope that the independent person looks at that.

Either way, I want to also continue this. We continuously hear that this isn't connected to the No North Brooklyn Pipeline or the M.R.I. project. While it's true that does not connect to sections 1 through 4. I want to say that the separation if we include Section 5 is a legal fiction.

Although they are legally separate projects under different rate cases and different ways that they recover their costs, they are in fact going to be connected. As I have in fact directly asked National Grid, if this was going to be flowing into this grid -- this facility, if it would be making it easier to fill that facility faster.

And they had confirmed that, yes, that

was part of the point. They can fill it faster and then let it out faster. Now, I would say that it is clearly a combination of, you know, a clear connection between that segment of the M.R.I. and this vaporizer project, and also when combined, a clear expansion capacity.

So it's very hard for me to believe that this isn't an expansion of capacity, despite the fact we keep on hearing that. Lastly, this is in front of me, my written comment but, you know, this group got together, the other comment hearing before down in Cooper Housing.

And I just want to note that that was a -- there was a roomful of -- of Cooper residents, largely people of color, working class people, low income people, literally begging not to have this facility in their backyard. They're walking distance, a few blocks away from this facility and they were calling what this is, this environmental racism, so I encourage you to stop this facility. Thank you.

A.L.J. LEARY: Thank you. Fabian Rogers and Laura Shindell on deck.

MR. ROGERS: Good evening, everybody.

My name is Fabian Rogers. Again, thank you Judge, thank you elected officials, and thank you National Grid officials for being here. I'm a member of Brownsville Green Justice, B.G.J., Housing Organizer for People Empowerment, HOPE.

And again, I'm a staffer from Senator Brisport's Office in Senate District 25. I'm also a resident that actually grew up along the -- the breakdown of phases 1 and 2 of the pipeline, which is Brownsville going into Ocean Hill.

And so really today, the question of the environmental impact of phase 5 really cannot be answered without the full environmental review of the pipeline, including phases 1 through 4. Although by legalese phases 1 through 5 are separate by functionality as has been stated many times over earlier tonight.

Essentially, these phases 1 through 5 are connected. And so that means folks living along the evacuation zones of phases 1 through 5 which is about 1,275 feet, just along the pipeline have to be accounted for, because those are people that are at risk.

And although we keep saying these

things are separate, it's clear that there was a misstep because phase 5 has clearly been paused. And if that's the case, there's a clear case that there needs to be environmental review done.

And if that's the case, by functionality standards, if we're still relying on phases 1 through 4 to make phase 5 a thing of the future, and that's on pause, then that means we need to be retroactive in totality.

And that means, we need to go backwards, which means not ignoring the folks that live along phases 1 through 4, because again, folks -- if folks like me weren't in this room, we'd be going about our business and we just stopped the attention that's coming with phase 5. And so I'm a little frustrated because there's already State law that's supposed to be enacted.

Again, it's D.P.S.'s responsibility, basically, to approve the rate hike to pay for the pipeline, maintaining, and monitoring the safety of the ongoing infrastructure of the pipeline, testing, et cetera. And they also oversee New York State's implementation of the federal pipeline safety act.

And again, fun fact, this pipeline is

invisible amongst the national pipeline network from what I understand now. If I'm wrong feel free to correct me. But as long as I've known this pipeline to exist, it doesn't have an archival record within the national pipeline network.

So again, we're talking a lot of minutiae and legalese, but at the end of the day, I'm just worried about the people that live along this evacuation zone that don't have a second option if anything goes wrong, whether it's the phase 5 vaporizer facilities, or it's the folks that live along phases 1 through 4 where it's clear that phase 5 relies on that infrastructure in order for it to essentially function.

And so with that, I think it's clear that the rate hike decision was wrong. D.P.S. shouldn't have allowed the rate hike because despite acknowledging that the C.L.C.P.A. applied, it failed to apply the C.L.C.P.A. to black and brown communities that live along the pipeline.

D.P.S. failed to ensure that National Grid complied with the SEQR or the State Environmental Quality Review Act and that the pipeline met all regulatory requirements by ensuring

that D.E.C. reviewed the pipeline and the L.N.G. facility as one whole action.

And with that really being said, this probably should -- must be stopped, it should be stopped. There really should not be a question whether or not it should exist if we already see so many errors and so many pauses along this pipeline amidst the permit proceedings and these ongoing public hearings.

With that, I'd really like to see retroactive environmental review amongst not just phase 5, but phases 1 through 4 as well to make sure that we're looking out for the safety of all people that live here.

A.L.J. LEARY: Thank you.

MR. ROGERS: Thank you.

A.L.J. LEARY: Thank you. Laura Shindell and Helene Filion Onserud, you're on deck.

MS. SHINDELL: My name is Laura Shindell. I'm an organizer with Food and Water Watch. We have over 80,000 members in New York State. National Grid is continuously misleading the public. They started today's presentation by patting themselves on the back and I quote saying, they made

commitments to find solutions to meet New York's energy needs in 2019.

They conveniently omitted the fact that they were forced to make that commitment by Governor Cuomo and New York State to penalize them for the egregious and illegal political maneuvers they did to mislead the public into supporting the Williams NESE pipeline.

And now they aim to mislead us again claiming we need these vaporizers. But by their own admission in today's presentation, the forecast for demand is expected to go down because of electrification of buildings and efficiency standards that were passed at the city level by Local Law 97 and the Gas Free New York City legislation passed last year.

I asked during Q&A when they needed their existing backup supply of L.N.G. when they needed all of them, what they have currently, they didn't have an answer. And yet they claim we need more, even though demand is expected to go down.

They claim that they care about emissions and that that's just a way to make themselves look like they're your friendly

neighborhood utility. They care about their profits. They care about their shareholders and building more fossil fuel infrastructure violates the C.L.C.P.A. and it's morally reprehensible.

I urge Governor Hochul to deny the rate hike, and deny the air pollution permits, and to stop the L.N.G. vaporizers from ever getting built in Greenpoint. Thank you very much.

A.L.J. LEARY: Thank you. Liz -- let's see, Braswell -- Liz Braswell you're on deck.

MS. ONSERUD: Good evening, good evening. And thank you for giving me the opportunity to speak. My name is Helene Filion Onserud. I live in Sunset Park Brooklyn, where my house is heated by natural gas. National Grid’s bills can be high in the winter and given that I'm on a fixed low income, I dread seeing the rate go up again.

So I joined the No North Brooklyn Coalition and demand that the Public Service Commission deny National Grid's rate hike for two new fracked gas vaporizers next to the disadvantaged community. Both the New York State and New York City Climate Laws require us to reduce fracked gas use to meet greenhouse emission reduction goals.

The L.N.G. vaporizers are unnecessary and unjustified. And while they're not needed, we will be stuck with the bill if they're approved. In addition, this project, and the connected North Brooklyn pipeline, which I think most of us agree is connected, which is being built through predominantly black and brown working class neighborhoods will perpetuate a history of unfair incremental racism and contribute to higher rates of asthma, lung cancer, and other life threatening health condition for communities of color.

Our communities need healing. No more fossil fuel pollution. I'm also very preoccupied by the effects of climate change on the earth, and for what it's doing to the environment and what it's doing to the younger generation and to those that will come after it.

The scientists are telling us that the warming of the planet is worse than the computer models predicted a few years ago, and it is accelerating. The climate urgency is not in the future anymore. We see signs of it everywhere, including in Puerto Rico, in Pakistan, and in New York City when last year 13 people died in a flash

flood from the remnants of Hurricane Ida.

The only thing that will stop the climate warming the planet is getting rid of fossil fuels, including natural gas. So the last thing we need to build right now is more fossil fuel infrastructure. Thank you very much.

A.L.J. LEARY: Thank you. Liz Braswell and Kevin Lacherra on deck.

MS. BRASWELL: Hi, I'm Liz Braswell. I live on India Street. I was just going to come here to say things that have already been said much better which is that no new fossil fuel -- anything, first of all. But also I came to the hearing tonight, wanting not to hear both sides, but honestly, I'm not as well educated on this thing as a lot of people here are.

And the thing that struck me tonight was that I have heard so many reasons not to do this beyond fossil fuels. I didn't know how connected it was to issues in other communities. I didn't know that -- honestly, I didn't know that National Grid was a publicly traded company and is looking to expand its customer base.

I learned all this tonight. And the

slideshow didn't convince me of anything on the National Grid side. I mean, I don't even understand why this is a thing anymore because I've been in here for like an hour and a half and I'm like, this is crazy. That's it, thank you everyone.

A.L.J. LEARY: Thank you. Kevin Lacherra and Benjamin Lampel, you're on deck.

MR. LACHERRA: My name is Kevin Lacherra and I'm from Greenpoint. I'm here today because what National Grid is telling us is a lie. It's a lie that this neighborhood knows well. It's a lie we've been told before; that what they're doing is safe, that what they're doing is for our own good.

That we just don't understand these complicated systems. We know exactly what is going on because it has happened here before. It has happened again, and again, and again, and again. So just to start, we see you, we know exactly what's going on. If we're going to talk about what National Grid wants to do, we should also talk about what they've done and what it means.

This didn't make the cut for the PowerPoint, but Greenpoint was the birthplace of the industrial revolution in New York City. Standard Oil

built their empire on the banks of Newtown Creek and sacrificed one of the most diverse tidal estuaries in the world in order to do it. Oil, and gas, and kerosene, and chemicals were held and processed there at a scale beyond what we can imagine.

But that legacy and its consequences are not in the past, they're still here. They're standing right over there. I'm a fourth generation Greenpointer, I'm proud of it, and I know what it means. It means that my great grandfather worked in the factories for Standard Oil and my great grandmother died of the cancer that was off the charts in Greenpoint.

It means that my grandpa worked in the factories that lined the banks of the creek and my grandmother died of cancers that have taken family members of anyone who's lived here long enough. Because when Standard Oil and Brooklyn Union Gas which became National Grid built their empire, it wasn't for us.

They left 30 million gallons of oil in the ground in Greenpoint, the largest underground oil spill in North America, a fraction of a fraction of the money that they carried off. They poisoned the

air, and the water, and the soil and they left us to deal with the consequences.

We don't have four generations to work this out, we never did and we see crystal clear what National Grid is trying to do, it's the same playbook they've run in Greenpoint for a 150 years. They will prioritize profits over people every time. And when the water comes National Grid and their shareholders won't be the ones trying to decide which family photo album to take or to leave behind.

They won't be the ones worried about the kids and their elderly neighbors. They won't be the ones forced out of their homes, we will. The Maspeth facility where National Grid wants to use 65 million dollars of our money to build these vaporizers is some of the most polluted land in all of North America, 120 acres along the Newtown Creek.

A 120 acres, larger than all the green space in all of Greenpoint and Williamsburg combined. Think for just a moment about what that could be. What it must be if we're going to survive what's to come. We know the way out. We know that it's together. We know because just like our history shows us how things have gone wrong, it also shows

how people have risen time and again to meet those challenges too, that is what we are doing here tonight.

Greenpoint never backs down from a fight and will not accept one more inch of fracked gas infrastructure in this community. We stand in solidarity with every community along this pipeline route; Brownsville, Bushwick, Bed-Stuy, Williamsburg, we reject the vaporizers, we reject the pipeline, and we reject National Grid, public power now.

A.L.J. LEARY: Benjamin Lampel, no, okay. Clifton I cannot read the last names.

MR. SMITH: Smith.

A.L.J. LEARY: Smith, thank you. Come on up. And Anna Williams you're on deck.

MR. SMITH: Good evening again. My name is Clifton Smith and I'm -- and I'm from the Bronx. So I'm going to say -- okay. Yes, so the new -- the new energy stronger is no longer legal in New York City because of the threat that it posed of the public safety.

The community of North Brooklyn Park -- of North Brooklyn are some of the most polluted in -- in North America. Now to be sure becoming to the

-- to the community with plant retired to green energy factory. Not extend is like -- like at the cost of the -- of the 10 of million that we put in of our dollars.

Okay. So what I see is that what's going to happen in 2003 where we lost power outage -- we lost power for a whole five hours because -- because -- because of the -- because of too many heat, it was like over 110 degrees. That how -- that's the -- that's the reason why I lost my grandmother.

And then the next year I lost -- I lost my grandmother which is my mom's side because of the too many heat, that's -- that's why -- that's why we need climate justice. All right. I have time. Yeah, I have time, okay. The public -- I'm going to read this and I'm going to be out of here.

The public has already submitted -- the rest of the communities against the three -- residents related in frustration, and we discussed it that more thorough review was not done in a way that we preferred by -- by the P.C.S. last August. We demand the P.A. to consider another thorough review to the -- the document of National Grid possibly

competing with C.L.C.P.A. that impact the communities. Thank you guys and have a good night.

A.L.J. LEARY: Thank you. Thank you. Lee Ziesche.

MS. WILLIAMS: I'm Anna Williams.

A.L.J. LEARY: I'm sorry, Lee Ziesche --

MS. WILLIAMS: Yes.

A.L.J. LEARY: -- you're on deck.

MS. WILLIAMS: Anna Williams, just a brief respectful request to the Commission to reduce -- reduce the return on equity for National Grid to half of its current 8.8 percent more in line with our U.K. neighbors because I do believe as long as National Grid has a target of 8.8 percent profit, they will do -- propose whatever they need to get there and that's just in their natural interest.

So the Commission needs to limit that natural interest or that economic incentive. And I know through no fault of the executives here today, that's just their objective, they need to make profits and meet certain goals of their company, so I asked the Commission for that. Thank you.

A.L.J. LEARY: Thank you. Lee Ziesche

and Brynn Fulles-Beeker, you're on deck.

MS. ZIESCHE: Hi. Thank you Judge Leary, and everyone for being here. Everyone in this room, thank you so, so much for being here. My name is Lee Ziesche. I'm an organizer with Sane Energy Project and a very proud member of the No North Brooklyn Pipeline coalition.

I am also a National Grid customer who is vehemently opposed to paying for these fracked gas vaporizers. National Grid said the words safety and reliability a lot these past two days. But the problem with that is, is that, with a product that requires puncturing a bunch of holes and fracturing rock into a radioactive shale play, and then creating a direct connection from that toxic rock into our homes that can never ever be safe.

In fact, studies are finding benzene in people's kitchen from their gas stoves and a new study released just today found in U.S. intrastate pipelines contain hazardous air pollutants, including neurotoxins, reproductive toxins, and carcinogens.

And we know it's also a climate disaster as well. And so as others have said, what this community has said multiple times in other

hearings, is that we do not want more fracked gas infrastructure. What we want is a plan for that very dangerous L.N.G. facility to be retired.

That is the only thing you're saying you're hearing us, but that is the thing we've been saying again,, and again and again. So that is the only thing that National Grid can take from this is that this community wants that facility retired.

And we're definitely also urging P.A. Consulting to take a really close look at this. We are requiring full greenhouse gas emissions, which is required by the C.L.C.P.A., the impact on this community, and we want to look very, very closely about whether these projects are needed.

Because National Grid has moved the goalposts multiple times, saying when they need these vaporizers in -- in service, and they're -- when they were pushing for the Williams pipeline, there was multiple assessments that showed that there was no need for that, if not -- if we follow our laws, if a more appropriate design day is taken into account, and that National Grid really overestimated conversions from oil to gas.

And so I really encourage the P.S.C.

to listen to everybody because phase 5 would be built today, if it wasn't for black and brown community members who crawled into the pit and stopped construction on phase 4. That is why phase 5 isn't built today, and if the P.S.C. does not do their job, I know I have been striking on my bill, I've refused to pay for the pipeline.

There are over 500 people that have committed to that, and so if New York State does not do their job, people in this room will. We are absolutely refusing to pay for more gas this late in the game. We will not pay for something that poisons our black and brown neighbors. And so I'm calling on Governor Hochul, the Public Service Commission deny this rate hike. Thank you very much.

A.L.J. LEARY: Thank you. Brynn Fulles and Sean --

MR. CAHILL: Cahill.

A.L.J. LEARY: -- Cahill. Is Brynn still here or -- yeah, Brynn, no? Sean come on up. And on deck is Anna Pearson, did you already go?

MS. PEARSON: I am not speaking.

A.L.J. LEARY: You were today, earlier today?

MR. CAHILL: All right.

MS. PEARSON: I will --

A.L.J. LEARY: I can't --

MR. CAHILL: My name is Sean Cahill, I live -- I'm sorry.

A.L.J. LEARY: Can I just --?

MS. PEARSON: -- I'm going to submit it in writing.

A.L.J. LEARY: Okay. Perfect. Thank you. Go ahead, I'm sorry.

MR. CAHILL: It's alright, I interrupted you. My name is Sean Cahill. I live in Greenpoint, I'm going to keep it short and sweet. But I oppose the rate hike to build these vaporizers. Put the money and put it into R&D, figure out different ways for clean energy and I oppose this. Thank you.

A.L.J. LEARY: Thank you. Ash Drury and Hannah Fire -- Firestone on deck.

MR. DRURY: Hello, my name is Ash. I'm a lifelong Brooklyn resident as well as a proud member of the No North Brooklyn Pipeline Coalition and I'm also pursuing a degree in urban sustainability at Brooklyn College.

And I'm here today to express that I'm completely opposed to any expansion of National Grid's L.N.G. facilities and their associated rate hikes. Over the last two days, many people have shared in these hearings the ways in which these projects are dangerous, racist, unneeded disasters in the making.

Building on this I want to illustrate the larger context they are being opposed on. For the past week, nearly all of Puerto Rico's residents have lost power, many of them losing their homes, suffering injuries, and amassing a communal trauma just five years after Hurricane Maria. This is happening at the same time as nearly a third of Pakistan is underwater, displacing millions upon millions.

This in the same summer as fires and unprecedented heat waves killed upwards of 1,500 people in Southern Europe. This all barely a year after Hurricane Ida, which broke landfill in Louisiana, killed 13 people trapped in basements right here in our city.

We are living in an age of environmental trauma at an unprecedented scale and

the scientific consensus makes it extremely clear that this is due to fossil fuel driven climate change. Along with the last years bringing floods, fires, hurricanes, and droughts they've also brought social movements at giant scales across the world.

And we should all expect that if dramatic shifts away from fossil fuel infrastructure are not made refugee crises, rebellions, protests, direct action, and riots in metropolitan centers will be the norm, and multinational corporations profiting off of environmental racism, like National Grid will be among the targets.

That being said, New York City also has an incredible opportunity. Every year renewable energy becomes cheaper, more accessible, and more reliable and public money should be used to phase out gas, not extend its life.

There are so many exciting options for New York City's future to be sustainable and community driven and just, and none of them include even more gas flowing through our city than already does, especially paid for by the public. This rate hike asks us to pay for the continued pollution of air, soil, and water we survive on and the people are

clearly and overwhelmingly saying no.

A.L.J. LEARY: Thank you. Hannah Firestone, Kristen Gonzalez on deck.

MS. FIRESTONE: Hello. Thanks everyone for being here. My name is Hannah Firestone. I live in Bed-Stuy. And I'm here to echo what a lot of people have said, climate change is an urgent issue. I think that's clear to everybody here. It's personal for all of us, as has been said, it's already happening.

Personally, for me, like where this hits is that I have always really wanted to be a parent and climate change makes me feel like I might not get to do that. And that's something that a lot of people get to do is something I think we all have a right to do and I don't feel like many of us will be able to raise kids in a safe world because of projects like this.

So for any of you who have power over this who get to say no to this, listen to this community, you say you care what the community says. I think we're speaking pretty loud and clear. No one wants this new facility and no one wants to be paying for it.

It's -- it's investment in the exact opposite direction that we need to be going. We have options let's invest in better options. Thank you.

A.L.J. LEARY: Thank you. Kristen Gonzalez. Sarah Lyons, you're on deck. Hi.

MS. GONZALEZ: Hi, everyone. My name is Kristen Gonzalez. I'm the Democratic nominee for State Senate District 59, the newly created State Senate seat. The newly created State Senate seat that covers right here in Greenpoint and Williamsburg goes up to Astoria.

And after knocking on thousands of doors in this district, thousands of doors right here in Greenpoint there are two things that are abundantly clear from this community. One, that we need action on climate now. And two, that we are a community of working class people that have been burdened with a cost of not only environmental catastrophes, but with the rising cost of living in the city.

So when I see a project like this proposed, I want to make it abundantly clear that I stand with assembly member Emily Gallagher. That I stand with the City Council Member Lincoln Restler

and with all of you in opposition. This is not what our community needs.

This is not a step in the right direction in any -- any investment in additional fossil fuel infrastructure will be a threat to our future as a community and our future as a city. So with that, I want to add, you know, earlier in the presentation, we heard that 65 million dollars was going to be taken at risk to show a novel commitment to this project.

What is not novel to us is the money that we will have to pay for the 65 million dollars this project will cost, but it's not novel to us is the impact it will have on our black and brown working class residents. What is not novel to us is this company continuing to lobby in Albany and take us farther and farther away from the C.L.C.P.A.

So I'm so happy to see you all here tonight and please, please continue to stand in opposition of this project. Thank you.

A.L.J. LEARY: Sarah Lyons and Jonathan Jackson, you're on deck.

MS. LYONS: Hi, everyone. My name is Sarah Lyons. I'm a Greenpoint resident. I live just

a few blocks away from here. I'm here to oppose this project tonight. I remember last year when because of Ida, as people have already noted, the streets of this neighborhood were flooded and many homes and businesses were flooded.

I remember earlier this year when a historic drought burned up, crops burned up, flowers burned up, the beautiful parks that we have around here. And also at the same time yet another historic heat wave. We seem to keep having them year after year, another historic heat wave made it impossible to, you know, have a -- have a good summer to live a good life.

And all of this is a direct result of climate change. Climate change that we know is created primarily by fossil fuel and fossil fuel infrastructure. Due to this fact, we know that this project is going to continue to worsen climate change and continue to worsen its effects.

And all due respect, I know you're doing your job and you're doing it with grace. But even asking the question of whether this is a good idea is engaging in climate denial. I just want to say really quickly, I don't want to take up too much

time.

But I think that there was something very interesting about the way that the gentleman for National Grid were talking about people in this room tonight, that you kept referring us to customers. You look at a roomful of people, a roomful of community members and you just look at us as resources that you're going to exploit just as you've exploited the earth.

Just as you completely -- as you continue to exploit communities around you. I think that it's actually a very sad existence that you live. How sad is that to live a nonsensical worthless life, you contribute nothing, you live a vampiric life, you only exist to suck the resources, and life, and joy out of people, what a sad, pointless existence that is.

And quite frankly, I pray for your souls that you have a change of heart and you quit your jobs. Because if you do not quit your jobs, we will make sure your jobs are obsolete. We will replace you with something better, with something good, with something worthwhile. We will replace your fossil fuel infrastructure, your fossil fuel in

-- your fossil fuel empire with publicly owned renewable infrastructure. Thank you.

A.L.J. LEARY: Jonathan Jackson and Brett Thomason, you're on deck. Jonathan Jackson? Okay. Brett Thomason? Zachary Evans Eisenstat, you're on deck. Hi.

MR. THOMASON: Hi. Thank you for the opportunity to speak. My name is Brett Thompson. I'm the political director of Steamfitters Local 638. Just to give background, we've submitted a longer written testimony so I won't repeat that. I just want to speak briefly so that other people have time to -- to get in their comments.

As background, we represent 9400 construction workers that work in the maintenance and building of what is broadly considered energy infrastructure. Our members are at the center of creating a transition to a green economy.

We work among other things in doing deep energy retrofits to meet the demands of Local Law 97 and the -- the C.L.C.P.A.'s energy efficiency mandates. We tran -- we transition from oil to gas and then from gas to green energy sources like zero emitting geothermal and green hydrogen.

So we understand what the transition to clean energy looks like. And tonight, I just want to bring from their perspective, a focus on that word transition. And I also want to preface this by saying, I'm only here to speak about this particular project, not the facility as a whole or National Grid and their business model.

We represent the working men and women that maintain these facilities and build these facilities. So with that said, a project like this, that as we see it brings no additionality to the existing gas infrastructure, but simply allows it to be delivered in a more efficient and reliable way.

Because for better or for worse, in the near and short term we do rely on gas, especially in the winter when we need it in those coldest days. A project like that is -- is fully part of that transition. And I want to say there's not a day that goes by when I visit our members, whether it's in the field or in our union hall, where they don't tell me about the old, outdated fossil fuel facilities that they work on or that they maintain that could be run more efficiently.

That could be upgraded and maintained

and improved to draw down emissions, to fix methane leaks so that in the short term while we're relying on fossil fuels, before we make that transition to a clean energy economy, which a transition I would say our members are doing and are going to do.

We need certain projects like this targeted to make our existing gas infrastructure more efficient, more clean, more reliable. That's all I have to say. That's the reason that we support this particular project. Thank you.

A.L.J. LEARY: Thank you. Susan Albrecht and Trina McKeever, you're on deck. Susan Albrecht.

MS. ALBRECHT: Hi. Good evening. My name is Susan Albrecht. I'm a resident of Greenpoint for over 30 years. And I strongly oppose a proposal for the two new liquefied natural gas vaporizers. I'm calling on the Department of the Environmental Conservation to deny National Grid's permit requests and the Public Service Commission to deny any financing for this project.

In 2021, the New York City Mayor's Office of Sustainability, together with Con-Ed and National Grid commissioned a study called Pathways to

a Carbon Neutral New York City. The study identifies the path to achieving the climate goal of -- a zero carbon emissions for New York City.

While I'm not an expert on the aspects of that plan, I work as an affordable housing developer. And I know one consequence of the plan is that all electric buildings are the future for new development in New York City and that energy efficiency retrofits and electric heating and domestic hot water systems are the goals aligned with the carbon neutral path.

Multifamily building owners are starting to begin to comply with local and State mandated carbon reduction goals. In other words, the future is not gas and this is a waste of money. It is also well documented that our city needs to be -- to make dramatic switch to renewable power sources to achieve the goal, completely reducing reliance on fossil fuel before the year 2050.

What's not in line with the carbon -- carbon neutral path are the development of new liquefied natural gas vaporizers and a fracked gas pipeline, like the one that Natural Grid has been building in North Brooklyn.

As noted by our elected leadership, the spillover effects of the vaporizer will be felt throughout our community. National Grid should retire its aging system and L.N.G. facility and not extend its life. It's time to stop building new -- new fossil fuel infrastructure and start investing in renewable energy we urgently need.

Climate change is the greatest threat to New York City and this proposal clearly moves us in the wrong direction. Thank you.

A.L.J. LEARY: Thank you. Trina McKeever. Ms. McKeever and Katherine Thompson, you're on deck.

MS. MCKEEVER: Good evening. My name is Trina McKeever and I'm a longtime resident of Greenpoint and a longtime National Grid customer vehemently opposed to the expansion of fracked gas and the frack gas infrastructure.

I'm also a longtime member for the last 10 years or so of Community Board One and I just want to read from a letter that was written in 20 -- February of 2020 to the governor regarding the project.

Community Board One opposes National

Grid's proposed rate hike to expand fracked gas infrastructure in our neighborhoods. In particular, we oppose National Grid's plans to spend 65 million ratepayer dollars to replace two old vaporizers at the Greenpoint L.N.G. facility. These projects hold us back from achieving our renewable energy goals.

We should be mandating the replacement of all gas pipelines with shared geothermal loops and energy efficiency measures in our buildings. The industry coined the term national gas to create -- to create the sense that it's harmless, but the extraction, transport, and burning of this gas destroys the health of our water, land, and air.

Additionally, there are high levels of radioactivity in fracked gas from Pennsylvania as well as air pollutants that are detrimental to asthma patients, children, and pets. This pipeline and expansion of L.N.G. go against city and State climate laws to reduce greenhouse emissions.

And as those laws are implemented will become a stranded asset that leaves low to middle class New Yorkers to foot the bill.

A.L.J. LEARY: Thank you. Katherine Thompson and Margot Spindelman, you're on deck. You

did not -- where is Ms. Spindelman? You did not give a statement earlier today, right? Okay. Perfect, you're on deck.

MS. THOMPSON: Hello. My name is Katherine Thompson. I moved to Greenpoint in 1996 and raise three children here. To be a resident of Greenpoint means you have to get involved with community issues because we have so many issues to contend with, toxic oil spills, carcinogenic chemicals, asthma, autoimmune disorders, over development, lack of public space, and so on.

I joined along with thousands of my neighbors, the No N.B.K. Pipeline Coalition to fight against the building of the M.R.I. fracked gas pipeline permanent fossil fuel infrastructure because it's racist, harmful to the health of residents, and globally climate change is here and we have very little time left to change our course for the future of all Earth’s children and creatures.

I'm here tonight to speak out in opposition to National Grid's expansion of L.N.G. vaporizers in Greenpoint. The idea that National Grid is saying that these vaporizers are non pipeline alternatives as if they were green energy alternative

to this methane gas, fossil fuel, carbon dioxide, and methane emissions producing facility makes me very angry.

National Grid is pushing a project they haven't proved we even need. National Grid's permit application claims that two new L.N.G. vaporizers are needed at the Greenpoint facility to meet the increased demand for natural gas, but demand for renew -- for gas is going down, not up.

And this is accelerating -- and this is an accelerating trend as we step up the pace to move towards renewable all electric energy efficiency and geothermal. They even said that current vaporizers were only needed for 80 hours in the past five years at the cost of 5 million dollars.

5 million dollars for 80 hours, think about that, do the math. And this bill is to be paid for by us the ratepayers to a for-profit company. It is outrageous, because remember National Grid's profit from fossil fuel transmission -- excuse me, because remember National Grid profits from building fossil fuel transmission infrastructure, not by selling gas.

New York City declared we are in a

climate emergency. They passed the Climate Leadership Community Protection Act, which requires that we dramatically reduce greenhouse gas emissions. As a ratepayer and a longtime resident of North Brooklyn I will say there's tremendous distrust. For generations, our government has allowed private companies to profit by polluting and harming our communities.

Decisions were made to bifurcate and destroy communities, to make way for highways, and fossil fuel production, and storage, and a host of other extremely toxic carcinogenic chemicals, and the people here have paid the price.

I'm here tonight to speak out in opposition to National Grid's expansion of L.N.G. vaporizers in Greenpoint. As a ratepayer I'm here to demand that the Public Service Commission do a more thorough review on these L.N.G. vaporizers.

The P.A. Consulting Group must assess the need for this project and especially the viable alternatives, greenhouse gas emission potentials, and impact on disadvantaged communities. The previous assessment done by the P.A. Consulting Groups did not meet standards outlined in the joint proposal which -

- for which I was a party, by failing to properly access these viable -- the potential viable alternatives, greenhouse gas emission potentials and impact on disadvantaged communities --.

A.L.J. LEARY: Ms. Thompson, time.

MS. THOMPSON: Okay.

A.L.J. LEARY: Thank you. Ms. Spindelman? Pati Rodriguez are you here?

MS. RODRIQUEZ: Yes.

A.L.J. LEARY: You're on deck.

MS. SPINDELMAN: My name is Margot Spindelman. I live in Greenpoint. My building has flooded in Irene, Sandy, and Ida. I live between the Superfund sites of New Heart Plastics and Newtown Creek. I'm watching and experiencing with all of you, the trajectory of climate disaster that is becoming more and more apparent.

Pakistan has suffered the worst flooding in its recorded history with over a third of the country underwater. Recently, U.N. Secretary General, António Guterres, referring to that ongoing disaster said the world is sleepwalking toward the destruction of our planet.

Alaska has had its worst storm in 50

years and the entire population of Puerto Rico is without power after Hurricane Fiona. We are on fire. We are drowning. We don't have to look overseas or across the country though. While my building was flooding, people were drowning in their own homes in Queens.

António Guterres is speaking to the world. He is speaking directly to us here in North Brooklyn. We have got to stop burning gas. The P.S.C. has to deny National Grid's rate hike for two new fracked gas vaporizers next to a disadvantaged community.

National Grid continues to claim that there isn't enough gas in spite of substantial studies to the contrary and legislation like Local Law 97 and the city's gas ban. They have built a racist pipeline between Brownsville and Williamsburg that targeted black and brown communities who have already borne the brunt of the harms created by their poison.

They keep saying we need to pay for more and more gas. But what we know is that, in the last three winter seasons, those big white tanks near the Kosciuszko Bridge, which we all know in this

neighborhood, those big tanks that hold the gas were barely tapped into.

In the last three winter heating seasons 10 percent, 1 percent and last year 12 percent of tank capacity was used. Does anyone really believe that this winter will bring the need to use magnitudes more gas. I'm not making these numbers up. These numbers were provided by National Grid in a Public Service Commission proceeding.

National Grid says that if they add these new vaporizers, their emissions will go down since they are more efficient. They will reduce their emissions by a whopping 99 metric tons of CO2. 99 metric tons of CO2 is the equivalent of taking 21.3 cars off of the road for one year. This is a con. It is robbery to ask people already struggling to pay bills to pay $65 million dollars for all this infrastructure that we do not need.

Instead, P.A. Consulting must conduct a thorough review of this project, including a full greenhouse gas emission assessment and impact on disadvantaged communities. National Grid has paved the path to net zero that includes methane all the way into the 2040s. We cannot fulfill -- fulfill a

true net zero future if we begin in earnest in 2049.

They want to preserve their pipelines and their methane and the money pipeline from us to them while damaging people's health and the planet. We are not divorced from the world. No part of the world is divorced from the other. The Pakistan floods, the California fires, the droughts in Europe and China, our -- ours -- our emissions count in the world's climate math, safety, and reliability.

Honest to God making this gas system bigger is not safe. Continuing this gas -- gas system --

A.L.J. LEARY: Ms. Spindelman, time.

MS. SPINDELMAN: -- will reliably send us further over the climate cliff.

A.L.J. LEARY: Thank you. Pati Rodriquez, Andrew Epstein on deck. Now I want to remind everybody, we're not going to make it unless you are brief. Do not exceed. Do not force me to tell you your time is up, okay. Stay at two minutes if you can because we're not going to make it.

MS. RODRIQUEZ: Hi, my name is Pati Rodriguez. I'm a member of Mi Casa Resiste. I grew up in and I live in just a few blocks away from the

pipeline in Bushwick, also known as phase 3 of the North Brooklyn pipeline or the M.R.I. how they call it. Even though I'm constantly on the ground as a community organizer and the Mayday Space.

The first time I heard about this pipeline and me living in Bushwick and being from Bushwick was in January 2020, when a group of organizers asked me to help defend against it. And that's exactly what we did. I literally jumped in and chained myself to this pipeline to try to stop the construction.

And I was arrested along with several other community members. My work as an environmental justice leader has included educating the community about the pipeline as D.P.S. should have done in order to comply with the Pipeline Safety Act.

And it is clear that this pipeline has been placed in predominantly black and brown neighborhoods. Yet D.P.S. failed to conduct the required C.L.P. -- C.L.C.P.A. analysis and mandated that mandated a consideration of the impact of this project on disadvantaged communities.

The rate hike decision acknowledged that the C.L.C.P.A. applied, and yet refused to apply

it to any phase of the pipeline. D.P.S. also failed to ensure that the pipeline complied with the -- with State law. And that National Grid and D.E.C. evaluated the environmental impact of the -- of the pipeline and L.N.G. facility as one whole action.

The past summer, I and my fellow activists challenging this pipeline in phase 1 to 4 took federal officials from the U.S. Environmental Protection Agency and the U.S. Department of Transportation on a tour of the pipeline route in our neighborhoods, that we had to map out ourselves because D.P.S. failed to ensure that the National Grid submitted the pipeline to National Pipeline Mapping systems as the Pipeline Safety Act requires.

We know that this pipeline violates federal and State laws. So why is it still going? This pipeline needs to be shut down. I know that today National Grid said a lot and said, you know, that basically, they're not connected. I don't believe anything they say because they never came into our neighborhood.

Like, it's great to see how there's a -- here there's a review, like we never got that. Maybe it's because we're in black and brown

neighborhoods, right? Maybe because we're low-income neighborhoods. They don't give a -- they don't care about us.

So I urge everyone here to continue to show up, you know, because at the end of the day, look, they're giving you guys a chance to review this while they never gave us any chance to review the pipeline that's going through our homes.

Right now that pipeline is going right next to my home. It's right next to the school --

A.L.J. LEARY: Time.

MS. RODRIQUEZ: -- on my child and it's going to affect us. If it explodes, it's going to -- we're all going to die. Okay. So this is how -- this is how we're going to be affected for real.

A.L.J. LEARY: Ms. Rodriguez, thank you. Mr. Epstein and Luke Ohlson. Where is Mr. Ohlson? I want you to come -- anybody on deck, I want you to come up and sit here. So I want to make it. I want to make everybody have their comment, have their opportunity. So come up here and sit and you can jump right up.

MR. EPSTEIN: Thank you so much, Your Honor. And my name is Andrew Epstein. I -- I work

for Assemblymember Gallagher. I'm not speaking for the office, but I'm speaking as someone who works every single day in Greenpoint and when I'm not in Greenpoint, I'm in Albany. And I can speak about National Grid's behavior on both fronts.

I find it insulting, and reckless, and incredibly dangerous that instead of coming to this community with a concrete and actionable plan to rapidly decommission, Greenpoint’s energy facility, their natural gas facility and a -- a move for a just an quick transition for the incredible workers there to do the work of decarbonization and clean energy.

They're instead coming to us in September of 2022, asking to -- us to pay for their new fossil gas infrastructure. This is dangerous, it's anti-scientific, and it's frankly insulting. And I think it's also a tremendous waste of the incredible expertise and engineering capacity and the workers we heard about earlier, who do very highly skilled work to not use that brain power and those skills to rapidly decarbonize our climate.

Usually putting these workers on a path. They will deliver the clean energy future for us. They know how to do it. But we need to be

spending the money on that right now. Earlier today, National Grid said they are not actively seeking to solicit new customers for natural gas. This is only about maintaining their current customers.

I'd respectfully ask them why does National Grid continue to spend millions of dollars, going up to Albany ,lobbying lawmakers against the all electric building that which is solely for new building construction, new building construction.

The Climate Action Council, which was the council that was created by the C.L.C.P.A. to enact our climate laws says clearly, we need to implement a Statewide ban on new buildings that involve fossil gas construction. And I cannot tell you how hard we worked with 76 other legislators to try to get that critical piece of climate legislation across the finish line.

And do you know who stopped those? National Grid and the American Petroleum Institute. They spent money lying to people saying that we're coming for your gas, we're going to make everything more expensive. If you are about serving existing customers, stop, get out of the way of us meeting our climate goals for the love of God.

We don't have time. We are out of time. So thank you for having this hearing. I want to put this on the record. I think it's important and that we were just going to have to continue to fight until we own the power system that serves us.

A.L.J. LEARY: Jane Pool. Jane Pool, you're on deck. Come up and sit down. Is she here?

MR. OHLSON: You're in the on-deck circle. My name is Luke Ohlson. That's an extremely tough act to follow. I am just going to echo what Andrew just said. I'm going to echo needing to review this entire pipeline and -- and I take to heart that communities have been affected already by decisions made by National Grid.

I also want to point out, is El Fuente in the house, El Fuente, yes, right. Over on the south side of Williamsburg what they're doing right now is they are getting funds together, getting care packages together to send to Puerto Rico for hurricane Fiona relief, okay. The climate change, you know, crisis is not coming. It is here. It has been here. And this is absolutely unacceptable. I'm saying no to the vaporizer. I am going to cede the rest of my time to other people to speak.

But I just really want to applaud all the efforts of all the activists that have put themselves on the line to get themselves in front of this pipeline. And I again, say no, no, no, no, no, no, no, no, no.

A.L.J. LEARY: Jane Pool, Mara Moss.

MS. POOL: Hi, I'm Jane Pool. And I was in Cooper Park houses today. And I -- and I addressed the National Grid and I said, I can see that they've done a lot of research, but did they research the fact that, you know, this community has, you know, where many of you may have golf courses near where you live. We have Superfund sites probably as many Superfund sites as you have golf courses near your houses.

And we also have waste transfer stations -- most of the city's. We have, you know, hundreds of factories that have to be registered as right-to-know sites. We have an oil spill bigger than the Exxon Valdez. It kind of goes on and on.

And it just seems just on every level wrong to pursue something like this and to put it near Cooper Park Houses where the asthma and cancer and autoimmune diseases. I mean, it's -- it's -- I

don't know. I can't fathom it. But the -- the good thing is that they, I hear them saying they're not marketing gas and there are all these, you know, they are acknowledging that there are alternatives and renewables that they want to pursue.

And we have this waste -- another big polluting the -- I think that we have is the biggest waste transfer, sewage treatment plant in the northeastern United States, maybe the country. And there's all that methane that could be captured and used. And the woman-run, Pam Elardo, who I don't know if you should all tour this sewage treatment plant. It's fascinating.

And the woman there is a genius. And she said that she could use slurry from waste management and human waste to power the entire city. But she's not being given the chance to do it. And I feel like we need to really help, all of us. I mean, we're all in it together, National Grid, all of us are in it together.

We need to work towards -- okay, what are these possibilities and figure it out and push our -- our electives. We don't have to push our electives. They're pushing us thankfully. That's

another thing I was concerned about community outreach, because when we fought the power plant, there's a whole big thing about community outreach.

And I know a lot of people that are unaware about this situation. And if I hadn't gotten -- Sane Energy, and you know, I'm the kind of person that I wanted to be on their mailing lists and these elected officials mailing lists, but if you're not, how do you know about this?

We could probably do that in more events like this and bring thousands of people if we got the word out more. So anyway, yeah, common sense to -- to -- to do the renewable thing, you know, put the money there instead of money into vaporizers that would pollute this poor damn neighborhood. Okay. Thank you.

A.L.J. LEARY: Thank you.

MS. POOL: Love Greenpoint and Cooper Park Houses. Yeah.

A.L.J. LEARY: I think it's Mara Moss? Mara Moss and Anne Bassen, you're on deck. Is Ms. Moss here? Okay. Let's -- what is it?

UNKNOWN MALE: She left.

A.L.J. LEARY: Okay. Anne Bassen.

Anne Bassen. All right. Yup, yup. I need Daniela Castillo up in this chair.

MS. BASSEN: My turn? Anne Bassen.

A.L.J. LEARY: Yes.

MS. BASSEN: Okay.

A.L.J. LEARY: You're losing time here.

MS. BASSEN: Okay. Sorry. Got to run up here with my disability. Okay. I'm Anne Bassen. I live in South Brooklyn. I came in support of this community. I haven't been keeping up with it, but I just want to make the statement. You don't need a weatherman to know which way the wind blows.

I mean, look at the world. There we're drowning. We're burning up like everyone else is saying and you people are not immune to it. Come on. We're all in this together. We don't need any more fossil fuel infrastructure. Anything -- nix. I am vehemently opposed to this. Thank you.

A.L.J. LEARY: Thank you. Ms. Castello. Daniela Castello. I need whoever is on deck to sit in this chair and not take everybody's time coming up here. Celina Trowell, you're on deck. Come on up.

MS. CASTILLO: Hi, everyone. My name is Daniela Castillo. I'm here vocalizing my adamant stance against the proposal of the two new liquefied natural gas vaporizers as well as the complete stop of phases 1 through 4.

As a representative of a Historical Environmental Justice Community in the south side of Williamsburg, but also I'm more personally as a resident and active community member of Bushwick phase 3 of the project of the -- the North Brooklyn pipeline. The southside community Los Sures has -- has historically felt the detrimental impacts of harmful racist infrastructure from waste transfer sites to the B.Q.E., to a severe lack of green open spaces.

Unfortunately, this is not new. And though not directly in the path of the pipeline in Los Sures, it is in Bushwick for a Bushwick center and -- and for personally for my homes and the work that I do in Bushwick. And we recognize the intersections within the overall detrimental impacts of this project. For the health of our environment and our bodies.

Not everyone might think is

intersectional and holistically in this way. It's crystal clear to us that the construction of these vaporizers is deeply and perhaps not like, legally in the words of National Grid.

It is connected to phases 1 through 4 of the pipeline and the well-being of communities directly along its path. The Bushwick center, as I no -- as I noted that services and is a hub for families and young adults located right on Central. In so many ways the existence of this project, both existing phases 1 through 4 and proposed vaporizers is incredibly flawed.

There's folks here who have already so eloquently stated that here, D.P.S. did not order that it go under an environmental review and the C.L.C.P.A. was not applied to the black and brown communities along phases 1 through 4. We don't want these two new vaporizers approved and complete and we want to ensure that phases 1 through 4 where I live and work is not left out of the conversation.

It was pushed through at the height of the pandemic. And I still have difficulty understanding the existence of the project or the demand or the need as was stated here many times

over. We spoke with El Fuente team members directly on the ground in Puerto Rico this morning. They continue without power and water.

They even prior -- prior to Maria, after Maria, they have been working towards building sustainable resilient futures beyond what has been imposed on them and on us. We know that the future lies in visions and solutions led by those at the center of these issues.

We urge to the Public Service Division not approve this and also go back to do an environmental review phase -- review of phases 1 through 4. There is no future in continuing with this extractive harmful infrastructure.

We have to do this now. We have to not allow this to continue and go back and do an environmental review of 1 through 4. Thank you.

A.L.J. LEARY: Thank you. Ms. Trowell. Marzeno Wolart. Marzeno Wolart, you are on deck.

MS. TROWELL: My name is Celina Trowell, and I'm the chair of the Ocean Hill Brownsville Coalition of Young Professionals and a founding member of Brownsville Green Justice. And

I'm proud to say I was born and raised in Brownsville, Brooklyn, along what is known as the phase 1 of this North Brooklyn pipeline.

I know that this was a hearing about vaporizers and National Grid wants us to believe that the pipeline is a separate project from the expansion of the L.N.G. facility. But these projects are in fact inextricably connected.

On record, National Grid claimed that the expansion of the L.N.G. facility was necessary in order to absorb the additional gas, the pipeline will be transporting to and through it. Please note we are in solidarity with stopping the expansion of the L.N.G. facility, while we also want to know, what about phases 1 through 4? What about the gas that's flowing through there?

The project was segmented in a way that ignores the fact that this facility is just one small part of a massive project that stretches across Brooklyn. This project will include over 7 miles of pipeline that runs from Brownsville to Ocean Hill, to Bushwick, to Williamsburg and be connected to this very facility.

D.P.S. was supposed -- is supposed to

be responsible for the implementation of the Pipeline Safety Act, which requires public education and awareness around pipeline construction. Yet somehow Brownsville was the last to find out. And even though we were the first to be impacted by it.

So since there was no public education, there was no community hearings. I'm here tonight at this one. Without our knowledge or consent, this dangerous fracked gas pipeline was built. And we did not know about it until almost three years after the construction started.

National Grid intentionally put this project to phases 1 through 4, because they thought that we would have the least resistance. They would have the least resistance from black and brown communities, and it pisses me off that D.P.S. didn't stop them.

Instead, D.P.S. ignored the segmentation of this project. D.P.S., you must expand your analysis to include the pipeline as National Grid and D -- D.E.C. should have done in the first place. To make matters worse, D.P.S. approved that rate hike which unfairly burdened our black brown disproportionately low-income communities

forcing us to pay high utility bills.

Also, why did D.P.S. allow the C.L.C.P.A. to be applied to the rate hike decision, but not to the pipeline? Where is the environmental review for that? How do you have the gall to only be concerned about the environmental impact of a fraction of the project without ensuring that National Grid properly considered the entire project in totality.

This type of race -- environmental racism has been going on for years. It's part of why you already have the worst public health outcomes than any other parts of the city because corporations like National Grid are allowed to get rich off of building infrastructure that poisons black and brown communities. And then black -- bragging about crumbs of community investments like philanthropic pimps.

Lastly, the only resolution we want is for this entire pipeline to be shut down and the gas to be shut off. If the gas is not running in Greenpoint, it shouldn't be running anywhere else. It had -- had they legally done the mandated or required impact environment -- environmental impact review, you would have known that.

If National Grid wants to continuously double down on this no longer needed to do this and C.N.G. expansion, then if that's the case, then we need to ask ourselves, why the hell do they still need phases 1 through 4. This entire project needs to be shut down as gas needs to be turned off.

And I'm going to put on the record because something happened to me before I came up here and I want to make sure it's on record. National Grid, you and your paid police and security, I will not allow you to ever intimidate me in this space.

So as a black woman, come up here supporting black, brown undocumented, and immigrant communities and I'm sitting here recording one of my colleagues. Don't you ever stand breathing feet behind me during the pandemic.

We will not allow it and we will stand up and support each other. Thank you.

A.L.J. LEARY: Go ahead. Marzena Wolart and Judith Canepa on deck. Is Judith Canepa here? Judith Canepa?

MS. WOLART: Wow, that was amazing. Good evening, everyone. My name is Marzena Wolart.

I was born and raised in Greenpoint, Brooklyn. I'm staunchly opposed to this project. To be honest, I'm here tonight for my daughter who's seven, beginning her life and I'm unclear how to tell her of the greed of the fossil fuel industry and the danger in her world due to climate chaos.

I don't know how to keep her safe, except for to do these things whenever I can. This project is dangerous in the short-term and the long-term. In the short-term, this project will expose residents of Greenpoint and surrounding areas to more pollution than they already have had to endure for decades.

My family members and neighbors have respiratory issues. My grandmother, a Greenpoint resident died of cancer. Second, if this pipeline ruptures, our community members, our neighbors will be put at risk. In the long-term, these sorts of projects only exacerbate the climate crisis that we are only seeing the beginning of. This summer the world has seen rivers drying up, fires, heat waves, droughts, flooding.

Each year, we witnessed a further unraveling of a one stable climate, a climate that

provides food, agriculture, stability, predictability. When we realize that all of -- when will we realize that all of these collective fossil fuel projects are interconnected and affect us all.

I object to this vaporizer project wholeheartedly. Governor Hochul, Department of Environmental Conservation reject this project. Thank you.

A.L.J. LEARY: Thank you. Judith Canepa and Kim Fraczek, you're on deck.

MS. CANEPA: Hi, I'm Judith or J.K. Canepa and we must deny these vaporizers, let's start with that. I live at the footstep of another giant utility, Con Edison on East 14th Street, Manhattan. We, in New York City, we pay among the highest utility rates in the country.

And yet many know most of the infrastructure is located in our city’s disadvantaged communities, read that places of people of color. They are sacrificed to fatten the purses of the investors and the executives of these monopoly utilities. Let's be specific.

Speaking about the need for two more giant vaporizers at National Grid's Greenpoint site.

What part of Greenpoint? Next to a NYCHA Housing. Poised on the edge of a waterway so polluted, they call this the muck, black laminate, black -- excuse me, black mayonnaise and declared it a federal Superfund site. That's where we're talking about.

In a community living above the largest underground oil spill in the entire country. This is perhaps one of the most glaring examples of environmental injustice. And -- and for what? For $65 million of our money, that's for what. For the claim that National Grid makes that they need it for redundancy.

They say we'll need this gas for years to come. They say their reliability is based on a degree day from the 1930s. That's how far back they had to go to get a day cold enough to argue for this. Do we completely ignore Local Law 97, the C.L.C.P.A. the other legislation that our city and State passed with such foresight, throw those out the window?

National Grid claims the need for more energy intensive vaporizers for their stored super chilled Liquefied Natural Gas, but independent studies by Synapse Energy and Eastern Environmental Law Center show a leveling off and even a decline in

the call for gas. Even if there were new customers which would there won't be.

Do we believe National Grid? Do we believe the fox who asks to guard the henhouse that the hens really need him? Or do we believe Suzanne Matej, former regional director of the Department of Environmental Conservation, who, as far as I know, maybe she eats chicken. Maybe she doesn't. I don't know. But she has no ulterior motive in predicting that we don't need the gas.

She knows her stuff. She tells it like it is. I was a math major. But a reasonably smart third grader could figure this one out. It's based on lies, greed, and environmental racism, pure and simple. We don't need it. We don't want it.

A.L.J. LEARY: Time.

MS. CANEPA: We're not going to pay for it, public power.

A.L.J. LEARY: Jeanne Bergman. Jeanne Bergman still here.

MS. FRACZEK: Thanks, y'all. My name is Kim Fraczek. I'm the director of Sane Energy Project. We represent about 13,000 New Yorkers across the State and about 12,000 members of the No

North Brooklyn Pipeline coalition. Our organization has built a long record and the 2019 rate case and the long-term solutions proceeding that opened up when National Grid faked out New Yorkers saying there was a gas shortage, so they could profiteer from the Williams NESE pipeline.

I'd urge National Grid representatives and P.A. Consulting to read our legal petitions. The two lawsuits, Cooper Park Resident Council with whom you met this afternoon, where there was 100 percent opposition to this project. And Sane Energy Project and local residents filed against your company proving that phases 1 through 5 and the L.N.G. vaporizers is one cumulative project.

And National Grid is avoiding a cumulative impact study that abides by the C.L.C.P.A. I also live in the mile radius of the L.N.G. facility at 287 Maspeth Avenue for the past 20 years. I grew up in Pennsylvania. The water reservoir, I grew up on is poisoned because of fracking infrastructure.

My mom's neighbors who've been fighting a pipeline today are running -- running a quarter mile away from my mom's house has asked me how we've been able to achieve such greatness in New

York. Defeating fracking and the multi-state toxic infrastructure like Port Ambrose L.N.G. Constitution pipeline, Northern Access Pipeline, and the Williams NESE pipeline.

And then they get confused when I tell them that I'm fighting a fracked gas pipeline and L.N.G. facility in my neighborhood in Brooklyn. My answer to them is because National Grid, the multibillion-dollar, multinational corporation based in the United Kingdom with a C.E.O. John Pettigrew, who makes $4,300 per hour -- per hour bought a bunch of utilities in the Northeast United States in order to turn a profit for shareholders.

I'm here tonight to oppose the request from National Grid to build two new fracked gas vaporizers at their Newtown Creek facility. I've attended both virtual hearings last night and the hearing at Cooper Park this afternoon, and 100 percent of the local residents have opposed this project.

And to the labor guy that approved it, like, hey, we're on the side of labor. We want the labor building our geothermal and solar, like, we don't want anybody else trapping our labor union and

pitting them against the -- the local residents who just want health and safety.

It's insulting that you would come to our community and tell us that we're confused about the projects. We know exactly what you're here to do. Keep your business going at the cost of the health and safety of my community and the climate of the earth. Thanks.

A.L.J. LEARY: Thank you. Michael Davis. Michael Davis, you're on deck.

MS. BERGMAN: Hi, my name is Jeanne Bergman. I live in Manhattan, which is directly affected by what happens with the combustion of fossil fuels everywhere. And I'm here because I am, among other things, incredibly disturbed that, first of all, the P.S.C. is not here, but I believe that's who is convening this hearing.

Because I think there's a really deep fundamental problem. And that is that that company represented by the Capos over there is naturally fighting for its life, because it has only one commodity in this territory, and that is gas. It has to sell gas.

On my side of the East River, Con-Ed

sales gas, and electricity. So they're not going to go out of business in the territory when we eliminate fracked gas. But these guys are going to lose their jobs. And the whole company is going to lose significant assets.

So they're trying to expand as fast as they can knowing that we're never going to use that gas that they're putting in there for safety, and reliability, and those extra things. They just need to spend the money because they need to raise the rate base, which is the base on the amount of money on which the -- that 8.5 percent return on equity is calculated, right?

So they're constantly seeking ways of building out infrastructure. And because they can't build electricity infrastructure, they need to build gas infrastructure. In a capitalist system, you cannot expect a for-profit corporation to cut its own throat by selling off its assets and just walking away from what it does. We need to drive them out of town.

More fundamentally, the P.S.C. needs to re-think how it operates because it is based on a turn of the century that is 19th, 20th century model

of regulatory -- of the regulatory compact, right? We'll give you guys 8, 9, 10 percent profit, return on equity, which is not technically profit. If you, in return for having a -- being regulated and having a territory with no competition.

That doesn't work anymore. We need deregulation so that we can have lots of distributed energy, lots of new companies going in and we need to get rid of this -- this chokehold that they have on us. And as long as the P.S.C. cloaks itself in the garb of safety and reliability, these meaningless, saccharine, banal terms, which actually conceal a history of racist exploitation and extraction that P.S.C. cannot be trusted to serve the public interest in which it is.

I wish Rory Christian were here. I wish the others were here. They need to understand that people in this city and around the world are desperate with grief and anger about what is happening and about what those companies are doing to us.

A.L.J. LEARY: Michael Davis.

MR. DAVIS: Hi, everybody. We are out of time. Do you National Grid and your neighbors

deny that the entire planet is -- is in annex ex -- existential distress due to the rapid heating of the earth caused by burning fossil fuels?

Most of us, 78 percent in the recent poll acknowledged what -- what -- what's happening to our planet. We are scared for our children. Don't you, National Grid's management care about your children? Why do you insist on contributing so much to our already very bleak future?

I ask the same question to the P.S.C. staff. The future we dread is happening faster than many models had predicted. Several disastrous feedback loops have developed. And as they develop, the warming will speed up. The 1.5 mark has already been crossed. We can see the effects every day on the news and their frequency will just increase as we dump more methane and CO2 into the air.

Why do we need two new vaporizers when last winter in New York City use only 12 percent of Greenpoint's storage capacity? In the previous two winters, it was even less. Why do you want to bring more fracked gas to fill full tanks? Could it be that the gas is not meant for New York City?

Could be -- could it be meant for

export? I don't believe what you say it's not -- it's not meant for export. If so then not only are we being asked to pay for poisoning ourselves, but for the National Grid's investment in spreading fossil fuel far and wide.

It is unconscionable to ask New Yorkers to pay rate increases during a period of impoverishing inflation for two useless soon -- soon to be stranded vaporizers. Do you see our communities of places of plunder? National Grid has already spent the money for the vaporizers.

So I must conclude that you're pretty darn certain you'll get that rate hike. How does this work? Ask the P.S.C. and you shall receive. We saw this kind of extortion National Grid engaged in during the gas moratorium.

What will you do if you don't get your way this time? I call on the P.S.C. -- P.S.C. to stand up to strong arm tactics and stand up for New York State Law. New York City passed the C.L.C.P.A. to acknowledge reality and fight for a better future. Is the State willing to enforce its own law? This is -- it's insane.

It is insane to aim for carbon

neutrality by increasing the flow of gas. Is there one official involved in deciding this rate case who is going to stand up and say I'm putting my family, all our families, all our communities before obscene profit?

I'm here to demand the P.S.C., the D.E.C., and Governor Hochul deny National Grid's requested surcharge for the new fracked gas vaporizers located, by the way right next to Cooper Houses. The only rational response to this request right -- rate hike is to deny it. Thank you.

A.L.J. LEARY: Everyone, we made it. We -- we heard from everyone who signed up. Thank you all of you for honoring the time limit. I'm going to ask you to remember there are other ways to comment. If you need the notice, I have it up here and it's on the table as you leave. Please do not stay here.

If you want to congregate, do so outside. It's a beautiful night. Have a wonderful evening. Thank you all for coming.

(Off the record; 8:52 p.m.)

STATE OF NEW YORK

I, HANNAH ALLEN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 144, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 28th day of September, 2022.

HANNAH ALLEN, Reporter